APPENDIX OF EXHIBITS

In the Matter of A. D., a Child

Washington County Circuit Court No. 25JU04261

Exhibits A through S to the Formal Notice of Fabrication, Material Omission, and Required Action

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This appendix is filed as a separate volume so that the letter it supports stands on its own. Each exhibit is preceded by a divider page. Audio exhibits and any exhibit not yet located in the working file set are marked at the divider page and provided or supplemented separately.

Index of Exhibits

Ex.	Document	Description / Format
A	Neuropsychological Evaluation / Parental Assessment of Mother	Christopher K. Tongue, Ph.D., Licensed Psychologist; evaluation date 10/30/2021.
B	Letter from Alquan Davis (Father) to Mother, January 15, 2023	Father's letter inviting and regulating Mother's presence at his home.
C	Audio excerpt — Sonya Faulkner, January 28, 2026	Recorded statement of the D16 Manager's commitment. Provided separately as media file `SonyaFaulknerByte.mp4`. [audio — separate media]
D	Audio recordings — January 28 and April 28, 2026 calls	Recantation and no-parental-capacity-assessment admissions. Provided separately as media files `SonyaFaulkner_1.28.mp4` and `SonyaFaulkner_4.28.mp4`. [audio — separate media]
E	Kimberly Beck email, September 9, 2025, 3:09 PM	Clerk rejection of Mother's September 8, 2025 filing.
F	Jurisdictional Trial Transcript, October 31, 2025	Emily Marquand testimony; Judge Rini rulings.
G	Rylan Duffy — Declaration of Diligent Efforts toward Service	October 21, 2025.
H	Kayla Miller — Affidavit Regarding Efforts to Serve Parent	October 28, 2025.
I	Sonya Faulkner emails, June 2, 2026 (10:33 AM and 3:19 PM)	
J	Notice of Tort Claim and § 1983 Pre-Suit Demand	
K	Washington County HR fee-waiver denial (Aaron Mendes, Sept. 19, 2025)	Referencing "evidence the County has in its possession." *Not located in the current file set — to be inserted.* [to be inserted]
L	Washington County District Attorney denial opinion (Deputy DA Sabina Khachaturova, Oct. 31, 2025)	*Not located in the current file set — to be inserted.* [to be inserted]
M	Petition for Review of Fee Waiver Denials (served on DA Barton, Oct. 17, 2025)	*Not located in the current file set — to be inserted.* [to be inserted]
N	Kitto text thread — 5:40 PM release and 5:59 PM reversal (Sept. 6–7, 2025)	Metadata-stamped screenshots; the 19-minute reversal and the "court summons" notice.

Ex.	Document	Description / Format
O	Shelter Hearing transcript excerpts, September 8, 2025	Telephonic contact with the court also provided separately as media file `MotherTelephonicContact.mp4`.
P	ODHS 307B case note — March 26, 2024 in-home interview	"Out of control not believed to be met at this time so a safety plan will not be implemented."
Q	ARIA certification of completion of court-ordered services	
R	Wolfpack Consulting and Therapeutic Services — Progress Notes (partial)	Partial records to establish participation only; confidential content not disclosed.
S	Mother's documented early attempts to resolve required services	Documentary support is incorporated and pin-cited in the letter; a standalone compilation follows if requested. [incorporated in letter]

EXHIBIT A

Neuropsychological Evaluation / Parental Assessment of Mother

Christopher K. Tongue, Ph.D., Licensed Psychologist; evaluation date 10/30/2021.

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NEUROPSYCHOLOGICAL EVALUATION / PARENTAL ASSESSMENT

NAME: Ashle A. Penn
DOB: 02/15/1988

DATE OF EVALUATION: 10/30/2021

REFERRAL: Ashle Penn is a 32-year-old woman who is the mother of three children and whose youngest child, born in 2019, is in the custody of Child Welfare and placed in relative foster care. According to the caseworker, Ms. Penn is seen by social service providers as intelligent and confident and has demonstrated very good parenting skills with her children. They also describe her as becoming defensive when asked about anything to do with her Child Welfare case and describe her as being difficult to have productive conversations with due to this. The DHS caseworker's letter states that they are often surprised by Ms. Penn's decisions, and they reportedly do not appear to line up with what she expresses. They describe her as not seeming to have an accurate perception of the reality of her situation. The purpose of the current evaluation is to aid in understanding the reason behind her decision making, and she has been previously court-ordered to participate in an evaluation since December of 2020, missing two previous appointments. Information about Ms. Penn's mental health is unknown, and it is unclear to Child Welfare whether she has had any previous mental health diagnoses. The caseworker's letter goes on to report that they have little understanding about Ms. Penn's family background. Ms. Penn's father moved to Portland, Oregon in 2021 to help her regain custody of her son. After two visits, her father reportedly abruptly left and told Child Welfare he could no longer participate and support Ashle due to concerns he had for her but did not elaborate about what he meant. Child Welfare reports that Ms. Penn has previously been in a relationship with the father of her two oldest children which was marred by domestic violence, although, as will be seen below, she denies this. She is described as having been more cooperative with her ex-partner in recent years. A primary concern on the part of Child Welfare, according to the caseworker's letter, is that according to them Ms. Penn seems to have a limited ability to understand what the children have witnessed and how this may have affected them psychologically. According to the caseworker's letter, Ms. Penn has not acknowledged the violence that has been inflicted on her in front of her children. There are a number of specific questions posed by the referring caseworker which I will attempt to address at the conclusion of the narrative below.

NAME: Ashle A. Penn
DOB: 02/15/1988

PROCEDURES: Ms. Penn was evaluated using clinical interview, review of available records, and the measures listed below.

1. Wechsler Adult Intelligence Scale-IV.
2. Wide Range Assessment of Memory and Learning-2.
3. Grooved Pegboard Test.
4. Boston Naming Test.
5. Delis-Kaplan Executive Function System – Trail Making Test, Conditions 1-5.
6. Delis-Kaplan Executive Function System – Verbal Fluency Test.
7. Delis-Kaplan Executive Function System – Color Word Interference Test.
8. Wisconsin Card Sorting Test – Computer Version 4.
9. Child Abuse Potential Inventory.
10. Millon Clinical Multiaxial Inventory-IV.

In addition to the above-mentioned psychometric instruments, the following records were reviewed.

1. Family Report from Multnomah County – 09/03/2021
2. DHS Assessment Summary – 11/14/2019
3. Washington County Sheriff's Office Reports

INFORMED CONSENT: Ms. Penn was informed that the contents of our diagnostic interview and psychometric assessment would be shared in a detailed report with Child Welfare and potentially the courts. She agreed to proceed with the exam.

BACKGROUND / SOCIAL HISTORY: Ms. Penn reports that she was born and raised in Southern California, moving to Portland, Oregon at age 17, where she completed her final year of high school. Her father, Avery Penn, now age 56, was a naval officer working in electronics during her childhood years, and her mother, Marie Penn, worked in medical office administration. She has a 35-year-old sister, Brittney, and a younger brother, Avery Penn Jr., age 29. Ms. Penn also has a half-brother, Masai Penn, age 8. Her parents separated when Ms. Penn was 26 years of age. Ms. Penn describes a normal childhood absent of any abuse or neglect on the part of her parents or any other family members.

Ms. Penn reports graduating from Roosevelt High School here in Portland with an A average and attending Portland Community College and Portland State University, obtaining a bachelor's degree in business and communication. She says at age 18 she worked for her father for a year as a loan originator and then for several years as a call

center employee for Wells Fargo. During her college years she worked as a waitress and bartender for three years. This was followed by three years of human resources work as a staffing manager and recruiter, at which she is now currently employed. She states that she is working 8-5, Monday-Friday, and sometimes on weekends.

Ms. Penn reports an arrest for DUII in 2012 and participation in what sounds like a diversion program for six weeks of alcohol and drug treatment. This is somewhat at odds with the legal history given in DHS records, which says that Ms. Penn has had two DUIIs and an assault charge resulting from one of them. She is notably listed as the victim on multiple police reports relating to her former domestic partner Barry Washington.

With regard to relationship history, Ms. Penn reports that at age 18 she commenced a relationship with an Alquon Davis, then age 26, and they were a couple for a decade, separating when she was 28 years of age. She says they are still friendly with one another. Their union produced two daughters: Amaiya, age 12, and Almira, age 10. Those two children are currently placed with Mr. Davis during the week, and he has legal custody. She denies any domestic violence occurring in this partnership. Prior to the onset of the Child Welfare case, Mr. Davis did not have legal custody of the children. Ms. Penn reports that at age 28 she commenced a relationship with a Barry Washington, and they were together for four years, separating approximately two years ago. She says that there were repeated episodes of domestic violence occurring over the 12 months prior to their separation. Their union produced a son, Feliciano, who was born in January of 2019. Ms. Penn reports that Mr. Washington was arrested for domestic violence on multiple occasions and is currently on probation related to a conviction for assault of Ms. Penn. They have no contact with one another. Ms. Penn states that she is currently living alone about five minutes by car from her daughters. Feliciano is placed with a paternal aunt in Vancouver, Washington and she has been having visitation with Feliciano once a week for an hour at the DHS office but now an hour a week in the community which is supervised.

PERTINENT MEDICAL HISTORY: Ms. Penn reports having all three of her children by cesarean section. She denies any history of serious injuries or illnesses. She denies any medication allergies. She takes no current medications.

SUBSTANCE USE HISTORY: Ms. Penn reports on interview that her first use of alcohol began at age 21 and she denies any history of alcohol dependence. She describes her typical pattern of use as consuming a bottle of wine over a period of two weeks, usually drinking socially with others. She reports using cannabis on an intermittent basis between ages 18 and 27 and says her last use was two years ago. She denies use of any other illicit

substances and denies participation in any substance use treatment other than the diversion program which followed her DUII arrest in 2012. According to the caseworker's letter, DHS has received information from collaterals about potential substance use by Ms. Penn, but this has not been confirmed and there was a report apparently in 2019 of an attempted overdose, which Ms. Penn denies on interview with me.

MENTAL HEALTH HISTORY: Ms. Penn denies any history of psychiatric hospitalizations, suicide attempts, or self-harm behaviors. She denies any history of eating disorder. She does report experiencing post-partum depression after the birth of her first child, which was successfully managed with the help of a parent mentor and a community health nurse who aided her in the early stages of her oldest child's development. She says that she has had 17 sessions of one-on-one domestic violence counseling through a therapist whom she states told her that she thought no further individual counseling was required. The history given by Ms. Penn is that she was referred to Lifeworks and no treatment was recommended, although the court has still mandated that she obtain more counseling. She says that in 2018, prior to the DHS case, she had gone to seek counseling at Lifeworks to discuss strengthening her parenting abilities and attended a year's worth of a parenting class. She states that when the children were removed in 2020 she went back to Lifeworks, and she was told that she did not meet their criteria for participation in their program, but she says Child Welfare did not believe her. Ms. Penn states that she obtained a letter from Lifeworks asserting her positive participation. After receiving another mental health referral from Child Welfare and attending an intake, she reports being told by providers that it was not medically necessary. She has been told, by her report, that the 17 sessions she attended were insufficient and has been referred again for more individual counseling but has not yet obtained a connection to do this.

I was able to speak by telephone with Sherri Lynn Blanton, QMHP, who is a counselor working for a licensed clinical social worker. Ms. Blanton states that she saw Ms. Penn this year when she had been referred for domestic violence counseling. Ms. Blanton felt that Ms. Penn met criteria for a diagnosis of adjustment disorder with anxiety. She states that Ms. Penn had denied seeing the father of her youngest child, but appeared not to be clear what the requirements were from Child Welfare. She states that most of the sessions were spent allowing the patient to vent her complaints about Child Welfare. She states that she gave her resources and eventually told her there was nothing else she thought they could do. She reports they had 15 visits altogether. They ended with the patient saying she was not going to be talking with her ex-partner Barry anymore and that they were not in contact. Ms. Blanton says her impression was that Ms. Penn was not entirely forthcoming about the nature of her situation.

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DOB: 02/15/1988

CURRENT COMPLAINTS AND FUNCTIONING: When asked about mental health symptoms, Ms. Penn states that her primary concern is that she misses her children. She denies any significant mental health symptoms, rating her mood as 8 on a scale from 0-10 most of the time, and she denies any suicide ideation. She denies any psychotic symptoms such as auditory or visual hallucinations. She denies any compulsive rituals or obsessive thoughts. She denies any trauma history such as sexual or physical assault, aside from that occurring in the context of her domestic partnership in which she was the victim of domestic violence. She denies any history of panic attacks and denies any anxiety other than that associated with her Child Welfare case. She denies any symptoms of post-traumatic stress disorder. She denies problems with sleep, saying she works late but wakes at 6am and feels rested on waking. Her appetite is normal, and she reports eating two meals a day.

BEHAVIORAL OBSERVATIONS / MSE: Ms. Penn is a right-handed, 32-year-old, African American woman, who is 5'4" tall and reports her weight at 135 lbs. She is dressed in casual clothing appropriate for the season and shows good self-care, grooming, and personal hygiene. Her speech is normal rate and productivity, with no abnormal prosody or dysarthria. She shows a normal range of affect. There were no gross motor abnormalities. Ms. Penn was cooperative to both diagnostic interview and psychometric testing and appeared to make her best effort on test tasks. Results obtained from neurocognitive assessment can be presumed to reflect an accurate picture of her abilities.

TEST FINDINGS

OVERALL INTELLECT: Ms. Penn was administered the Wechsler Adult Intelligence Scale-IV (WAIS-IV). On this measure she obtained a full scale IQ score in high average range, at the 86th percentile. High average range scores were obtained on WAIS-IV indices of verbal comprehension and working memory. She had an average range score on the WAIS-IV index of perceptual reasoning ability and her processing speed index score fell in very superior range. The reader is referred to the table below for a summary of WAIS-IV composite and subtest scaled scores, which will be discussed in greater detail as they apply to specific domains of cognitive functioning outlined below.

WAIS-IV Composite	Composite Score	Percentile Rank
Verbal Comprehension	110	75
Perceptual Reasoning	98	45
Working Memory	111	77
Processing Speed	140	99.6
Full Scale	116	86

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WAIS-IV Subtests	Scaled Score	Percentile Rank
Similarities	11	63
Vocabulary	13	84
Information	12	75
Block Design	9	37
Matrix Reasoning	11	63

WAIS-IV Subtests	Scaled Score	Percentile Rank
Visual Puzzles	9	37
Digit Span	10	50
Arithmetic	14	91
Symbol Search	16	98
Coding	19	99.9

MOTOR FUNCTION: Ms. Penn showed no deficit in fine motor control or motor speed. On the Grooved Pegboard Test, she obtained a high average range score of 63 seconds with her right (dominant) hand and 59 seconds with her left hand. On the Delis-Kaplan Executive Function System (D-KEFS) Trail Making Test Condition 5, a measure of motor speed, her score was also high average (SS=13).

LANGUAGE BASED FUNCTION: Ms. Penn shows a high average range vocabulary, consistent with her measured overall intellect. This was replicated in her performance on the Boston Naming Test in which she was asked to verbally identify a series of 60 objects presented in pictures. She obtained an average range score, with 54 of 60 spontaneously given correct responses and 59 of 60 correct responses with phonemic cueing. Ms. Penn also showed no deficit in oral fluency and verbal retrieval, in fact scoring in above average range on the D-KEFS Verbal Fluency Test and gave a superior range score when cognitive load was increased (D-KEFS Verbal Fluency: Condition 1 SS=15, Condition 2 SS=14, Condition 3 SS=19).

ATTENTION / CONCENTRATION: Ms. Penn showed no deficit in attention span, with an average range performance on WAIS-IV digit span. She was able to repeat 8 digits forward and had a raw score of 6 on sequencing and also fell in average range on digits backward. This was replicated in her performance on both the letter number repetition and sentence memory subtests of the Wide Range Assessment of Memory and Learning-2. Ms. Penn was also administered the D-KEFS Trail Making Test Conditions 1-4. On this measure she showed superior range function on a visual scanning task and scored in high average range on both number and letter sequencing tasks. Her score on Condition 4 of the Trail Making Test, which requires both divided attention and sequential reasoning, fell in average range with 1 error of set loss (D-KEFS Trail Making: Condition 1 SS=15, Condition 2 SS=13, Condition 3 SS=13, Condition 4 SS=11).

VISUALLY BASED SKILLS: As noted above, Ms. Penn showed no deficit on a visual scanning task. She performed in average range on tests requiring constructional ability and mental modeling of the assembly of parts into wholes. On the matrix reasoning subtest of

the WAIS-IV, a visually based analytic and fluid reasoning task which requires novel problem solving using visual material, her score was in the middle of average range.

REASONING AND JUDGMENT: Ms. Penn showed a solidly average range capacity for abstract reasoning, consistent with her measured overall intellect and background and education. Her fund of information was high average compared to same-age cohorts. There was no indication, based on diagnostic interview, that she has any difficulty recognizing ordinary social mores.

LEARNING AND MEMORY: Ms. Penn was administered the Wide Range Assessment of Memory and Learning-2 (WRAML-2). This is a broad range battery of both verbal and visual memory tests which includes both immediate and delayed recall trials, as well as tests of recognition memory for both verbal and visual material. Ms. Penn showed no deficit on this measure in either verbal or visual memory on either immediate or delayed recall trials, or on tests of recognition memory. The reader is referred to the table below for a summary of WRAML-2 core subtest scaled scores (scaled score of 7-13 is average).

WRAML-2 Core Subtest	Scaled Score
Story Memory	15
Design Memory	15
Verbal Learning	8
Picture Memory	9
Number Letter	14
Sentence Memory	10
Story Memory Recall	14
Verbal Learning Recall	9
Story Recognition	12
Design Recognition	15
Picture Memory Recog.	9
Verbal Learning Recog.	9

EXECUTIVE FUNCTIONING: As noted above, Ms. Penn scored within normal limits on a task requiring both divided attention and sequential reasoning. She showed superior range processing speed on both symbol search and coding subtests of the WAIS-IV and had a superior range score on the arithmetic subtest of the WAIS-IV showing again, no difficulties with working memory. She again showed normal range processing speed on the D-KEFS Color/Word Interference Test on both color naming and word reading tasks. On Condition 3 of the Color/Word Interference Test, which requires response inhibition, her score was high average, and when cognitive load was increased and she was required to perform a task which involved both response inhibition and category switching in

combination, her score was again at the top end of average range (D-KEFS C/W Interference Test: Condition 1 SS=12, Condition 2 SS=14, Condition 3 SS=13, Condition 4 SS=13).

Ms. Penn was additionally administered the Wisconsin Card Sorting Test – Computer Version 4 (WCST). In this test the subject is asked to match a series of cards appearing on a computer screen by using different strategies such as color, shape, or number. The demand for matching strategy is shifted unexpectedly over the course of the test's administration and the test is thought to measure the subject's capacity for conceptual reasoning, mental flexibility, and shifting of cognitive set. Ms. Penn scored in average range on this measure in terms of her ability to avoid making errors and in her ability to avoid making errors when categories were switched unexpectedly. She recognized 6 of 6 categories (WCST: TE standard score = 102, PE standard score = 98, Categories = 6 – using age and education demographically corrected norms).

PERSONALITY FUNCTIONING ASSESSMENT: Ms. Penn was administered the Millon Clinical Multiaxial Inventory-IV (MCMI-IV). No specific clinical syndromes such as mood, anxiety, or thought disorder emerge from the profile. There are elements of histrionic and narcissistic personality, but Ms. Penn was mildly defensive in her responding. Individuals with this profile tend to display at times impetuous behavior and yet have a high self-regard, viewing themselves as highly reliable and as disciplined in their communication. This profile is obtained by two groups of individuals. The first group includes well-functioning, generally adaptive individuals with no major personality disturbances who may be experiencing current psychosocial stressors. The second group of people show some behaviors which others may find difficult to tolerate. Typically, individuals with this profile have little in the way of uncertainty and while adept at winning over the favor of others initially, many relationships may not be long lasting. Individuals with this profile are often also unwilling to examine their own role in difficult situations that they find themselves in which involve prolonged distress and may respond by behaving in a somewhat erratic fashion. She is more novelty-seeking than average. Most notable is that this profile is someone with a very forceful and driven energy level who is likely to be quite ambitious, leading a highly structured and strictly organized existence. Individuals with this profile are unlikely to seek individual psychotherapy.

DHS CASE / PARENTING: I asked Ms. Penn to convey the narrative of how she became involved with Child Welfare and the nature of her child's placement in substitute care. She states that she did have an involvement with a Child Welfare caseworker in 2019, but after an initial contact, this individual never came to see her. She states that in January of 2020

a caseworker named Carissa came to the house and was accompanied by police. The caseworker assumed that she was in danger from her partner Barry, who had been arrested four days prior. Ms. Penn says she told the police she was okay when they arrived at first, but then the caseworker Cassie arrived. She reports that at the time she had a domestic violence grant and she had suitcases packed, intending to go to Las Vegas along with her son to where family was living. The worker questioned why Barry was in the house and Ms. Penn says that it happened to be Feliciano's first birthday. The caseworker then obtained a warrant and removed the children after the patient refused to allow her to inspect the home. Feliciano was at his paternal grandmother's house for the weekend at the time. The children were removed on February 29th. Ms. Penn's understanding is that the allegation was that she was failing to protect the children from exposure to domestic violence and she learned at a hearing in February that she was alleged to have refused services, something she vehemently denies. When I asked why her one-year-old has still not been returned after nearly two years, she says her belief is that Child Welfare fears she will allow contact with the father. The two older girls were removed on January 29, after which Ms. Penn placed them with their father to avoid their becoming involved in the social services system. She states that Child Welfare has mandated that she seek mental health services but was told by Lifeworks at an intake last year, by her report, that there is no need for services. I asked her to discuss the issue of her father coming to visit her and subsequently leaving rather abruptly. She says that she got into an argument with her father over her telling her 8-year-old half-brother, her father's son, not to spit on one of the girls when they were in the backseat of the car. Her father reacted to her angrily saying that she was not to discipline his child. They were not able to resolve their conflict and her father left and returned to the eastern seaboard. We went on to discuss her relationship with Child Welfare and she describes this as conflicted. She disagrees with the statement by the caseworker that she had said her son was not affected by exposure to domestic violence. She says that this is not what she intended to convey. She states that she has now had five hearings and the plan has been return-to-parent up until the last hearing. She has a new attorney and says she has discharged several past attorneys, feeling that they were not adequately representing her. There is another hearing scheduled for January. At this point, she says she has had 17 visits of individual therapy with a therapist named Sherri Lynn Blanton. She says that she has also been referred to Wolfpack as a mandated service through Child Welfare and was supposed to see a counselor named Klarissa Gaskell but ended up not seeing her. There has been no referral to a parenting class, and she says DHS has never felt that she had problems with her parenting or parent child interaction. She was later referred, after the Wolfpack referral, to the Domestic Violence Resource Center where she did an intake but was told that they could not offer what Child Welfare was asking for, which was more than the 10 sessions of supportive counseling that the domestic violence

resource center offers. While there, she talked with a Saba Attar. I asked her to talk about the outcome of her therapy with Sherri Lynn Blanton and she said that the primary focus of counseling was on psychological self-care, prioritizing things in her life, and recognizing her own agency in making decisions about her life. She does not recall any mental health diagnoses being made.

We went on to talk about her relationship with her youngest son's father. She says they have no contact at present and he is on probation. She is aware that he has visitation similar to her own, which is once a week at the Child Welfare office and which is supervised. She does not think they would ever reconcile but believes that they could cooperatively coparent as separated parents. We went on to talk further about the effect of all of these events and the domestic violence that the girls witnessed has had on them. She says that they witnessed only one incident of domestic violence and states that the girls were not physically abused by her partner Barry. She states that she does not believe the girls are showing symptoms of maladjustment or post-trauma syndrome. She is concerned that the girls' father, Alquon, with whom the girls are staying, is physically abusive to the girls and that he is not attending to their hygiene and often leaves them alone.

With regard to parenting practices, Ms. Penn answered questions regarding ordinary child development expectations and parenting practices in a coherent and constructive way. I also asked her to complete the Child Abuse Potential Inventory (CAPI). This is a broad range self-report measure which yields a subscale indicating the overall general risk of the possibility of abusive behavior in the parenting role, as well as containing subscales suggesting the presence of distress, rigidity in her coping style, unhappiness, problems in relationship with the child, problems with family, and an ego strength subscale. I was not able to obtain a valid profile on this measure and the cutoff score for the so-called "lie" scale was exceeded. Perusal of specific items however did not suggest to me that Ms. Penn was significantly at risk for harming her children. She was consistent in her responding and there was no evidence of random responding. The rigidity subscale of the CAPI was mildly elevated, consistent with what appears to be some elements of compulsive personality, and the ego strength subscale was significantly elevated, suggesting that Ms. Penn may at times have a rather inflated view of herself.

SUMMARY / FORMULATION: This 32-year-old woman is the mother of three children, one of whom, a 3-year-old boy, has been placed in the custody of Child Welfare for nearly the last two years. The children were removed in early 2020 as a result of concerns about their exposure to domestic violence from Ms. Penn's former domestic partner, who is the father of her youngest child. Child Welfare has continued to have concerns about Ms.

Penn's ongoing contact with this man, although she claims they do not have any. This is at odds with information obtained from Child Welfare which reports that there have continued to be episodes in which they are involved with one another, potentially representing a danger to her youngest child. She currently has visitation once a week in the community but previously supervised had visitation over most of the last two years for one hour a week at the DHS office. Her 3-year-old son is placed with his paternal grandmother. Ms. Penn arranged for her oldest two children to be given to the custody of their father at the beginning of the case and they are not a part of the current Child Welfare involvement. Ms. Penn describes a childhood in which she was mostly raised in Southern California but finished high school in Oregon and has obtained a bachelor's degree in business and communications through Portland State University. Her parents separated when she was 26 years of age, and she has an 8-year-old half-brother. She denies any history of being a victim of abuse or neglect but describes her father as a military man with a compulsive style. Ms. Penn reports an arrest for driving under the influence of intoxicants in 2012 and participation in a diversion program. Ms. Penn had an assault charge associated with one of these DUII charges and she is listed as the victim on multiple police reports relating to violence from her former domestic partner Barry Washington. Ms. Penn also describes a somewhat conflicted relationship with her ex-partner Alquon Davis, the father of her two daughters, aged 12 and 10, insofar as she sees him as a poor parent who has at times been physically abusive toward the children and not attended to their personal hygiene and care.

Medical history is unremarkable. Ms. Penn describes first using alcohol at age 21 and denies any history of alcohol dependence. She has a history of intermittent cannabis use by her report between ages 18-27. She denies use of any other illicit substances. Ms. Penn denies reports given to Child Welfare that she made a suicide gesture by attempted overdose in 2019. Her mental health history is reportedly absent of any psychiatric hospitalizations, suicide attempts, or self-harm behavior. She does report an episode of post-partum depression after the birth of her first child, which she says was significantly mitigated by involvement with a parent mentor and Child Development specialist. She has had referrals for mental health counseling and reports attending a 17-session course of therapy, who gives a mixed report of her involvement in treatment and participation in counseling. She describes having other referrals to Lifeworks and to the Domestic Violence Resource Center which were not completed as a result, by her report, of inconsistency between the offerings of these programs and the mandate from Child Welfare and the courts.

NAME: Ashle A. Penn
DOB: 02/15/1988

Ms. Penn denies any current mental health symptoms, although she reports distress about missing her children. She denies any trauma history and describes normal sleep and appetite. Ms. Penn presented with a normal rate and rhythm of speech and no abnormal motor behavior. She shows good self-care, grooming, and personal hygiene, and a normal range of affect. She displayed some carelessness in her approach to the evaluation at times, taking a longer lunch than was anticipated and arrived somewhat late as a result of traffic. Ms. Penn's measured overall intellect falls in high average range. She shows no deficit in fine motor control or motor speed and high average to superior range functioning in the domain of language. There is no evidence of any deficit in attention span, and she shows no impairment in sequential reasoning. Visual spatial ability also falls well within normal limits. She shows a solidly average range capacity for abstract reasoning and a high average range fund of information. Tests of learning and memory for both visual and verbal material show no deficit. Tests of executive functioning were similar, insofar as there is no evidence of any deficit in her capacity for processing speed, mental flexibility, set shifting, or planning and organization. A measure of personality functioning was answered in a mildly defensive fashion but did not indicate the presence of any clinical diagnoses. She has a personality style characterized by compulsive and paranoid personality traits and is highly mistrustful of others. She appears to display a degree of inflated self-regard. Individuals with her profile are sometimes unwilling to examine their own role in complicated or adverse circumstances in which they find themselves. The narrative of her involvement with Child Welfare was somewhat hard to follow but she has now dismissed several attorneys representing her and has had a fraught relationship with a variety of caseworkers and social service providers. She describes her relationship with her youngest child's father as estranged, at odds with reports from Child Welfare, and claims no intent to reconcile with him but believes they could coparent responsibly as separated individuals. A self-report measure related to parenting and the overall risk of abusive behavior did not yield a valid profile, but specific perusal of item endorsement did not indicate that Ms. Penn is at risk of harming her child.

With regard to the specific questions posed by the referring caseworker, I find no evidence of any cognitive deficits or intellectual difficulties. In fact, Ms. Penn scores in high average range overall. There are no clinical diagnoses evident but features of compulsive and paranoid personality. Ms. Penn's insight into the conditions which led to her children being in custody appears to be fair. Ms. Penn's perception of her own strengths and weaknesses is that she sees herself as a highly organized and functional individual who has had inadequate representation and/or treatment by social service providers. I have no way of establishing the veracity of her self-report with regard to her contact with her ex-partner, which is quite at odds with that given by Child Welfare. A referral for mental health

counseling would not be in the service of treatment of mood, anxiety, or thought disorder, nor is there evidence for a severe disorder of personality. I do suspect that the personality traits evidenced by Ms. Penn do contribute to some conflicted interactions with legal representation and social service providers. I do not see any evidence in the profile or in diagnostic interview that Ms. Penn has any difficulty recognizing ordinary stages of child development or that she has any unusual attitudes toward parenting practices and discipline.

DSM-5 DIAGNOSES

1. Features of compulsive and paranoid personality.

RECOMMENDATIONS:

1. Mental Health Services: At this point, I do not recommend participation in substance abuse treatment or mental health counseling, given the lack of evidence for mental disorder. In spite of her history of being a victim of domestic violence, I do not see Ms. Penn as suffering from symptoms of post-traumatic stress disorder.

2. Parenting: Ms. Penn, in my opinion, does not merit referral for parent training. She seems to have an adequate understanding of child development and parenting practices which would likely not be improved by attending the typical parenting class. I do not see strong evidence that she would be unable to put the needs of her children ahead of her own. Nevertheless, Ms. Penn's mixed ability to understand the nature of Child Welfare and the degree to which she has been frank and transparent with social service providers appears to be a complicating factor in the case. I am not in a position to ascertain the veracity of Ms. Penn's statements to social services providers; however, overall, her mental health evaluation does not suggest significant psychiatric illness of any kind.

3. Neuropsychological Follow-Up: It is recommended that Ms. Penn have a follow-up session with this provider in order to review in detail the findings of the current psychological examination.

NAME: Ashle A. Penn
DOB: 02/15/1988

Thank you for the opportunity to evaluate this interesting woman. Please let me know if I can be of further help in this matter.

C. Tongue

Christopher K. Tongue, Ph.D.

CKT/jt

EXHIBIT B

Letter from Alquan Davis (Father) to Mother, January 15, 2023

Father's letter inviting and regulating Mother's presence at his home.

Gmail AshLe' Penn <ashlepenn.ap3@gmail.com>

(no subject)

1 message

Alquan Davis <alquand78@gmail.com> Sun, Jan 15, 2023 at 2:36 PM
To: "ashlepenn.ap3@gmail.com" <ashlepenn.ap3@gmail.com>

Get Outlook for iOS

Document1.docx
14K

EXHIBIT C

Audio excerpt — Sonya Faulkner, January 28, 2026

Recorded statement of the D16 Manager's commitment. Provided separately as media file `SonyaFaulknerByte.mp4`.

EXHIBIT D

Audio recordings — January 28 and April 28, 2026 calls

Recantation and no-parental-capacity-assessment admissions. Provided separately as media files `SonyaFaulkner_1.28.mp4` and `SonyaFaulkner_4.28.mp4`.

EXHIBIT E

Kimberly Beck email, September 9, 2025, 3:09 PM

Clerk rejection of Mother's September 8, 2025 filing.

Gmail AshLe' Penn <ashlepenn.ap3@gmail.com>

Case No. 25JU04261 — Emergency Motion for Telephonic Appearance — Hearing 1:30 PM Today

3 messages

AshLe' Penn <ashlepenn.ap3@gmail.com> Wed, Mar 11, 2026 at 1:15 PM
To: wsh.familylaw.remotehearing@ojd.state.or.us, "Kimberly A. Beck" <Kimberly.A.Beck@ojd.state.or.us>, juvenileweb@washingtoncountyor.gov

Dear Juvenile Court Clerk,

Good afternoon.

Please accept for filing in **Case No. 25JU04261 (In the Matter of Almira Davis)** the attached documents:

1. **Mother's Emergency Motion for Telephonic Appearance; Declaration of Defective Court Notice; and Memorandum of Law in Support**
2. **[Proposed] Order on Mother's Emergency Motion for Telephonic Appearance**

These filings are submitted in connection with the hearing scheduled for **1:30 PM today, March 11, 2026**.

This motion is filed as soon as practicable after Mother learned this morning that the court's hearing notice had been mailed to an incorrect address. As a result, Mother did not receive notice of today's hearing until contacting the Juvenile Department by phone earlier today.

The motion respectfully requests authorization for **telephonic appearance** at today's hearing or other appropriate relief the Court deems proper.

Please confirm that these documents have been **received and docketed in the record for Case No. 25JU04261**.

Thank you for your assistance.

Respectfully,

AshLe' Penn
Mother – In Propria Persona
Case No. 25JU04261
424.242.3374 Contact Number For Telephonic Appearance

2 attachments

Proposed_Order_Telephonic_Appearance_3-11-26.pdf
37K

final telephonic appearance.pdf
66K

AshLe' Penn <ashlepenn.ap3@gmail.com> Wed, Mar 11, 2026 at 1:18 PM
To: scott.a.johnson@ojd.state.or.us

[Quoted text hidden]

2 attachments

Proposed_Order_Telephonic_Appearance_3-11-26.pdf
37K

Appendix of Exhibits – Exhibit A – Case No. 25JU04261 21

final telephonic appearance.pdf
66K

Kimberly A. Beck <Kimberly.A.Beck@ojd.state.or.us> Wed, Mar 11, 2026 at 1:28 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>, WSH FamilyLaw RemoteHearing <wsh.familylaw.remotehearing@ojd.state.or.us>, "juvenileweb@washingtoncountyor.gov" <juvenileweb@washingtoncountyor.gov>

The court cannot accept emailed motions/orders. They must be filed electronically.

Thank you,

Kimberly Beck

Juvenile Case Processing Clerk*
Juvenile Department Lead

Washington County Circuit Court

(503) 846-8888 ext. 70621
*Adoptions, Guardianships, Emancipations, Back-Up Courtroom Clerk for Judge Goldman

NOTICE: *This communication may contain privileged, confidential, or other information exempt from disclosure under applicable law. If you received it in error, please advise me by reply email and immediately delete the message and any attachments without further reviewing, copying, or disclosing the contents.*

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Wednesday, March 11, 2026 1:15 PM
To: WSH FamilyLaw RemoteHearing <wsh.familylaw.remotehearing@ojd.state.or.us>; Kimberly A. Beck <Kimberly.A.Beck@ojd.state.or.us>; juvenileweb@washingtoncountyor.gov
Subject: Case No. 25JU04261 — Emergency Motion for Telephonic Appearance — Hearing 1:30 PM Today

WARNING: This email is from outside of the Oregon Judicial Department. If links or files in this email are unexpected, even if from an email address you trust, please call the sender on the phone and verify them before you click.

[Quoted text hidden]

EXHIBIT F

Jurisdictional Trial Transcript, October 31, 2025

Emily Marquand testimony; Judge Rini rulings.

1
00:00:01,030 --> 00:00:01,850
[AAG Wadia] Good morning, Your Honor. We're

2
00:00:01,850 --> 00:00:02,670
[AAG Wadia] here in the matter while we are

3
00:00:02,670 --> 00:00:05,890
[AAG Wadia] Davis. Case number 25JU04261.

4
00:00:05,890 --> 00:00:07,750
[AAG Wadia] Today's day is October 31st,

5
00:00:07,750 --> 00:00:09,770
[AAG Wadia] 2025. This is the time to

6
00:00:09,770 --> 00:00:11,470
[AAG Wadia] accept your sexual trial as to

7
00:00:11,470 --> 00:00:13,480
[AAG Wadia] mother in this matter. Yasmin W

8
00:00:13,480 --> 00:00:14,880
[AAG Wadia] adia on behalf of the Attorney

9
00:00:14,880 --> 00:00:16,390
[AAG Wadia] General's Office, on behalf of

10
00:00:16,390 --> 00:00:17,800
[AAG Wadia] the Orton Department of Human

11
00:00:17,800 --> 00:00:19,340
[AAG Wadia] Services court worker Emily Mar

12
00:00:19,340 --> 00:00:20,840
[AAG Wadia] quand, permanency caseworker

13
00:00:20,840 --> 00:00:22,110
[AAG Wadia] David Mellon, as well as PS

14
00:00:22,110 --> 00:00:23,690
[AAG Wadia] worker Ashley Platton. On

15
00:00:23,690 --> 00:00:24,820
[AAG Wadia] behalf of the trial in this

16
00:00:24,820 --> 00:00:26,350
[AAG Wadia] matter, counsel Ryan Lotzky.

17
00:00:26,350 --> 00:00:28,240
[AAG Wadia] Mother Ashley Penn is not

18
00:00:28,240 --> 00:00:29,170
[AAG Wadia] present.

19
00:00:30,170 --> 00:00:31,850
[AAG Wadia] father Alquan Davis is present,

20
00:00:31,850 --> 00:00:33,420
[AAG Wadia] represented by counsel Ivana M

21
00:00:33,420 --> 00:00:35,090
[AAG Wadia] oles. On behalf of the CASA

22
00:00:35,090 --> 00:00:35,450
[AAG Wadia] program

23
00:00:35,450 --> 00:00:37,930
[AAG Wadia] this morning, CASA supervisor,

24
00:00:37,930 --> 00:00:40,400
[Judge Rini] Alton Murphy. Okay, let me make

25
00:00:40,400 --> 00:00:42,650
[Judge Rini] a couple little notes here.

26
00:00:47,130 --> 00:00:47,680
[Judge Rini] All right. Thank you, Judge. At

27
00:00:47,680 --> 00:00:50,480
[AAG Wadia] this time, I would request that

28
00:00:50,480 --> 00:00:52,410
[AAG Wadia] mother be found in default,

29
00:00:52,970 --> 00:00:56,240
[AAG Wadia] pursuant to ORS 419B 914. The

30
00:00:56,240 --> 00:00:58,390
[AAG Wadia] agency has filed an affidavit

31
00:00:58,390 --> 00:01:00,460
[AAG Wadia] of an absent parent search as

32
00:01:00,460 --> 00:01:00,970
[AAG Wadia] well

33
00:01:00,970 --> 00:01:02,380
[AAG Wadia] as the Oregon Department of

34
00:01:02,380 --> 00:01:03,480
[AAG Wadia] Justice has filed its

35
00:01:03,480 --> 00:01:05,190
[AAG Wadia] declaration of diligent efforts

36
00:01:05,190 --> 00:01:06,730
[AAG Wadia] in trying to serve

37
00:01:06,730 --> 00:01:09,520
[AAG Wadia] mother. Mother has, despite the

38
00:01:09,520 --> 00:01:12,040
[AAG Wadia] agency attempting contact with

39
00:01:12,040 --> 00:01:14,730
[AAG Wadia] mother, emailing with mother,

40
00:01:14,730 --> 00:01:14,890
[AAG Wadia] trying

41
00:01:14,890 --> 00:01:16,900
[AAG Wadia] trying to set up dates, times,

42
00:01:16,900 --> 00:01:19,090
[AAG Wadia] locations to serve Mother, she

43
00:01:19,090 --> 00:01:22,750
[AAG Wadia] has essentially evaded service.

44
00:01:23,870 --> 00:01:24,530
[Judge Rini] Well, she's got that little pes

45
00:01:24,530 --> 00:01:25,570
[Judge Rini] ky warrant out.

46
00:01:25,870 --> 00:01:28,640
[AAG Wadia] Yes. And additionally, it can

47
00:01:28,640 --> 00:01:30,670
[AAG Wadia] be argued that Mother has

48
00:01:30,670 --> 00:01:33,170
[AAG Wadia] constructive notice of these

49
00:01:33,170 --> 00:01:33,590
[AAG Wadia] proceedings

50
00:01:33,590 --> 00:01:35,410
[AAG Wadia] that she has been attempting to

51
00:01:35,410 --> 00:01:37,450
[AAG Wadia] file in the dependency case. At

52

00:01:37,450 --> 00:01:39,510
[AAG Wadia] this point in time, Judge,

53
00:01:40,030 --> 00:01:41,100
[AAG Wadia] I would request that Mother be

54
00:01:41,100 --> 00:01:42,640
[AAG Wadia] found in default and that the

55
00:01:42,640 --> 00:01:44,410
[AAG Wadia] agency be able to proceed with

56
00:01:44,410 --> 00:01:44,610
[AAG Wadia] its

57
00:01:44,610 --> 00:01:46,230
[AAG Wadia] prima faccia as to the

58
00:01:46,230 --> 00:01:48,310
[AAG Wadia] allegations as to mother,

59
00:01:48,310 --> 00:01:50,730
[AAG Wadia] father at our previous hearing

60
00:01:50,730 --> 00:01:52,730
[AAG Wadia] did enter admissions.

61
00:01:53,850 --> 00:01:57,730
[Judge Rini] Okay. I will note in my file, I

62
00:01:57,730 --> 00:02:01,250
[Judge Rini] have had an opportunity to

63
00:02:01,250 --> 00:02:02,730
[Judge Rini] review the

64
00:02:02,730 --> 00:02:06,720
[Judge Rini] declaration of diligent efforts

65
00:02:06,720 --> 00:02:09,410
[Judge Rini] and also the affidavit

66
00:02:09,410 --> 00:02:13,720
[Judge Rini] regarding efforts to serve mom,

67
00:02:13,720 --> 00:02:15,330
[Judge Rini] both of which have been filed.

68
00:02:15,330 --> 00:02:17,010
[Judge Rini] I will also take judicial

69
00:02:17,010 --> 00:02:19,090
[Judge Rini] notice of the fact that Judge

70
00:02:19,090 --> 00:02:19,510
[Judge Rini] Thompson

71
00:02:19,510 --> 00:02:20,910
[Judge Rini] has signed a warrant for mom

72
00:02:20,910 --> 00:02:22,660
[Judge Rini] and that is still outstanding.

73
00:02:22,660 --> 00:02:25,290
[Judge Rini] Mom has attempted to file

74
00:02:25,290 --> 00:02:26,440
[Judge Rini] documents

75
00:02:26,440 --> 00:02:31,090
[Judge Rini] which I ruled upon. Why are

76
00:02:31,090 --> 00:02:35,370
[Judge Rini] those not in the file? Can you

77
00:02:35,370 --> 00:02:37,780
[Judge Rini] ask him why those are not in

78
00:02:37,780 --> 00:02:38,990
[Judge Rini] the file?

79
00:02:38,990 --> 00:02:41,370
[Judge Rini] because I made a ruling on them

80
00:02:41,370 --> 00:02:41,710
[Judge Rini] .

81
00:02:43,750 --> 00:02:44,810
[Judge Rini] Let me double check.

82
00:02:44,910 --> 00:02:46,330
[Judge Rini] Oh, no, they're down on 1014.

83
00:02:47,470 --> 00:02:49,000
[Judge Rini] Mom is clearly using some AI,

84
00:02:49,000 --> 00:02:52,170
[Judge Rini] some chat, you know, whatever,

85
00:02:52,810 --> 00:02:55,930
[Judge Rini] but citing statutes that don't

86
00:02:55,930 --> 00:02:58,430
[Judge Rini] actually apply to juvenile

87
00:02:58,430 --> 00:02:59,270
[Judge Rini] proceedings.

88
00:02:59,270 --> 00:03:01,530
[Judge Rini] So it's computer generated.

89
00:03:03,070 --> 00:03:06,160
[Judge Rini] So she also is making some

90
00:03:06,160 --> 00:03:09,580
[Judge Rini] other efforts to do some fil

91
00:03:09,580 --> 00:03:12,970
[Judge Rini] ings, but I will find the state

92
00:03:12,970 --> 00:03:15,840
[Judge Rini] has made diligent efforts under

93
00:03:15,840 --> 00:03:19,810
[Judge Rini] 419B 914, and therefore will

94
00:03:19,810 --> 00:03:22,190
[Judge Rini] find mother in default.

95
00:03:22,490 --> 00:03:23,510
[Judge Rini] And she clearly knows of the

96
00:03:23,510 --> 00:03:25,100
[Judge Rini] proceedings as she keeps filing

97
00:03:25,100 --> 00:03:26,710
[Judge Rini] regarding the proceedings.

98
00:03:27,990 --> 00:03:30,390
[Judge Rini] So you may proceed.

99
00:03:30,390 --> 00:03:31,670
[AAG Wadia] Thank you, Your Honor. Your

100
00:03:31,670 --> 00:03:33,630
[AAG Wadia] Honor, at this time, the agency

101
00:03:33,630 --> 00:03:35,350
[AAG Wadia] would call Emily Marquand to

102
00:03:35,350 --> 00:03:37,360
[AAG Wadia] provide testimony regarding the

103
00:03:37,360 --> 00:03:39,390
[AAG Wadia] allegations to one another.

104
00:03:43,730 --> 00:03:43,730
Under the penalty of perjury,

105
00:03:43,730 --> 00:03:43,730
do you solemnly swear or affirm

106
00:03:43,730 --> 00:03:45,190
[Speaker 3] that the testimony you were

107
00:03:45,190 --> 00:03:46,500
[Speaker 3] about to give in this

108
00:03:46,500 --> 00:03:48,430
[Speaker 3] proceeding is the truth or the

109
00:03:48,430 --> 00:03:50,450
[Speaker 3] whole truth and nothing but the

110
00:03:50,450 --> 00:03:51,330
[Speaker 3] truth?

111
00:03:51,410 --> 00:03:51,930
[Speaker 3] Yes, I do.

112
00:03:52,170 --> 00:03:53,480
[Speaker 3] The statements of the person

113
00:03:53,480 --> 00:03:55,350
[Speaker 3] Marquandt's record, Emily Marqu

114
00:03:55,350 --> 00:03:57,670
[Speaker 3] andt, M-I-L-I-E-M-A-R-Q-U-A-N-D.

115
00:03:58,670 --> 00:04:00,430
[Judge Rini] Oh, you can be seated for your

116
00:04:00,430 --> 00:04:01,330
[Judge Rini] testimony.

117
00:04:03,670 --> 00:04:05,190
[AAG Wadia] Good morning, Ms. Marquand. How

118
00:04:05,190 --> 00:04:05,870
[AAG Wadia] are you employed?

119
00:04:06,110 --> 00:04:06,670
[AAG Wadia] I work for the Oregon

120
00:04:06,670 --> 00:04:07,970
[Speaker 3] Department of Human Services,

121
00:04:07,970 --> 00:04:09,110
[Speaker 3] Child Welfare in Washington

122
00:04:09,110 --> 00:04:09,650
[Speaker 3] County.

123
00:04:10,050 --> 00:04:10,800
[AAG Wadia] And how long have you been so

124
00:04:10,800 --> 00:04:11,730
[AAG Wadia] employed, ma'am?

125
00:04:11,970 --> 00:04:12,980
[Speaker 3] I've worked for the agency for

126
00:04:12,980 --> 00:04:14,070
[Speaker 3] eight and a half years.

127
00:04:14,590 --> 00:04:16,010
[AAG Wadia] Ms. Marquand, are you familiar

128
00:04:16,010 --> 00:04:17,700
[AAG Wadia] with the agency's petition in

129
00:04:17,700 --> 00:04:19,510
[AAG Wadia] the matter of Elmira Davis?

130
00:04:19,810 --> 00:04:20,110
[Speaker 3] Yes.

131
00:04:20,810 --> 00:04:22,020
[AAG Wadia] And as it relates to

132
00:04:22,020 --> 00:04:25,640
[AAG Wadia] allegations surrounding mother,

133
00:04:25,640 --> 00:04:27,390
[AAG Wadia] have you reviewed the petition

134
00:04:27,390 --> 00:04:28,390
[AAG Wadia] allegations?

135
00:04:28,670 --> 00:04:30,430
[AAG Wadia] Yes. What is the agency then

136
00:04:30,430 --> 00:04:32,050
[AAG Wadia] regarding allegation A? The

137
00:04:32,050 --> 00:04:34,350
[AAG Wadia] mother does not understand the

138
00:04:34,350 --> 00:04:35,770
[AAG Wadia] specific needs of this child

139
00:04:35,770 --> 00:04:37,580
[AAG Wadia] and lacks skills necessary to

140
00:04:37,580 --> 00:04:39,660
[AAG Wadia] safely parent. At the time of

141
00:04:39,660 --> 00:04:42,000
[Emily Marquand] the after hours call related to

142
00:04:42,000 --> 00:04:43,980
[Emily Marquand] this family, there was an

143
00:04:43,980 --> 00:04:46,050
[Emily Marquand] incident between child and

144
00:04:46,050 --> 00:04:47,940
[Emily Marquand] father. This resulted

145
00:04:47,940 --> 00:04:50,190
[Emily Marquand] ultimately in the child being

146
00:04:50,190 --> 00:04:52,080
[Emily Marquand] taken to the hospital for

147
00:04:52,080 --> 00:04:54,390
[Emily Marquand] reviews of any injuries. At

148
00:04:54,390 --> 00:04:56,390
[Emily Marquand] that point in time, hospital

149
00:04:56,390 --> 00:04:58,330
[Emily Marquand] staff had talked with the child

150
00:04:58,330 --> 00:04:58,640
[Emily Marquand] .

151
00:04:58,670 --> 00:05:00,520
[Emily Marquand] and the child had made some

152
00:05:00,520 --> 00:05:02,790
[Emily Marquand] very concerning disclosures of

153
00:05:02,790 --> 00:05:04,020
[Emily Marquand] suicidal ideations.

154
00:05:05,470 --> 00:05:06,560
[Emily Marquand] When Almira was informed that D

155
00:05:06,560 --> 00:05:09,190
[Emily Marquand] HS was attempting to contact her

156
00:05:09,190 --> 00:05:11,140
[Emily Marquand] mother to release her to her

157
00:05:11,140 --> 00:05:11,470
[Emily Marquand] care,

158
00:05:11,470 --> 00:05:13,410
[Emily Marquand] she expressed concerns about

159
00:05:13,410 --> 00:05:15,390
[Emily Marquand] being in her mother's care.

160
00:05:17,630 --> 00:05:18,310
[Emily Marquand] After talking with the hospital

161
00:05:18,310 --> 00:05:20,310
[Emily Marquand] social worker, it was learned

162
00:05:20,310 --> 00:05:21,790
[Emily Marquand] that there were concerns around

163
00:05:21,790 --> 00:05:23,370
[Emily Marquand] the child's mental health and

164
00:05:23,370 --> 00:05:24,990

[Emily Marquand] self-harming, leading to the

165
00:05:24,990 --> 00:05:26,580
[Emily Marquand] hospital recommending that

166
00:05:26,580 --> 00:05:28,270
[Emily Marquand] the child actually admitted

167
00:05:28,270 --> 00:05:30,170
[Emily Marquand] that day for further evaluation

168
00:05:30,170 --> 00:05:34,430
[Emily Marquand] . The social worker did have the

169
00:05:34,430 --> 00:05:36,330
[Emily Marquand] conversation with the child and

170
00:05:36,330 --> 00:05:38,170
[Emily Marquand] completed the risk assessment

171
00:05:38,170 --> 00:05:39,760
[Emily Marquand] and was and the child was flag

172
00:05:39,760 --> 00:05:40,110
[Emily Marquand] ged as

173
00:05:40,110 --> 00:05:41,740
[Emily Marquand] high risk for suicidal ideation

174
00:05:41,740 --> 00:05:42,870
[Emily Marquand] and that the child had

175
00:05:42,870 --> 00:05:44,330
[Emily Marquand] attempted to commit suicide a

176
00:05:44,330 --> 00:05:45,150
[Emily Marquand] few days prior

177
00:05:45,150 --> 00:05:46,700
[Emily Marquand] with a knife but refused to

178
00:05:46,700 --> 00:05:48,520
[Emily Marquand] have her wrist and arms checked

179
00:05:48,520 --> 00:05:50,430
[Emily Marquand] for injuries. The child noted

180
00:05:50,430 --> 00:05:50,830
[Emily Marquand] that

181
00:05:51,790 --> 00:05:53,550
[Emily Marquand] she wouldn't attempt suicide if

182
00:05:53,550 --> 00:05:55,090
[Emily Marquand] she went home with her dad but

183
00:05:55,090 --> 00:05:56,750
[Emily Marquand] would attempt suicide if she

184
00:05:56,750 --> 00:05:58,910
[Emily Marquand] went home with her mom. The

185
00:05:58,910 --> 00:06:01,260
[Emily Marquand] hospital social worker informed

186
00:06:01,260 --> 00:06:03,280

[Emily Marquand] the agency that because of

187
00:06:03,280 --> 00:06:03,550
[Emily Marquand] these

188
00:06:03,550 --> 00:06:05,920
[Emily Marquand] ideations that the child would

189
00:06:05,920 --> 00:06:08,060
[Emily Marquand] be held overnight and have a

190
00:06:08,060 --> 00:06:10,390
[Emily Marquand] full evaluation the morning of

191
00:06:10,390 --> 00:06:11,630
[Emily Marquand] September 7th.

192
00:06:15,870 --> 00:06:18,630
[Emily Marquand] the hospital social worker

193
00:06:18,630 --> 00:06:21,660
[Emily Marquand] later informed the agency that

194
00:06:21,660 --> 00:06:24,390
[Emily Marquand] the mother did talk with the

195
00:06:24,390 --> 00:06:24,750
[Emily Marquand] child

196
00:06:24,750 --> 00:06:27,260
[Emily Marquand] while at the hospital and this

197
00:06:27,260 --> 00:06:29,490
[Emily Marquand] conversation ultimately

198
00:06:29,490 --> 00:06:31,500
[Emily Marquand] resulted in the child or

199
00:06:31,500 --> 00:06:32,590
[Emily Marquand] ultimately

200
00:06:32,590 --> 00:06:33,850
[Emily Marquand] resulted in the mother

201
00:06:33,850 --> 00:06:35,570
[Emily Marquand] confronting the child on these

202
00:06:35,570 --> 00:06:37,370
[Emily Marquand] concerning behaviors which led

203
00:06:37,370 --> 00:06:38,110
[Emily Marquand] to the child

204
00:06:38,110 --> 00:06:40,130
[Emily Marquand] then recanting these behaviors

205
00:06:40,130 --> 00:06:42,100
[Emily Marquand] or these statements and saying

206
00:06:42,100 --> 00:06:44,130
[Emily Marquand] that everybody was lying about

207
00:06:44,130 --> 00:06:44,510
[Emily Marquand] what she

208
00:06:44,510 --> 00:06:46,050

[Emily Marquand] had said related to the self-

209
00:06:46,050 --> 00:06:47,650
[Emily Marquand] harming and that she had tried

210
00:06:47,650 --> 00:06:49,310
[Emily Marquand] to kill herself at the mom.

211
00:06:51,550 --> 00:06:51,760
[Emily Marquand] There is significant concern

212
00:06:51,760 --> 00:06:54,100
[Emily Marquand] that the mother did coach the

213
00:06:54,100 --> 00:06:55,950
[Emily Marquand] child to recant these

214
00:06:55,950 --> 00:06:57,680
[Emily Marquand] statements after the

215
00:06:57,680 --> 00:07:00,090
[Emily Marquand] conversation that the mother

216
00:07:00,090 --> 00:07:02,350
[Emily Marquand] had with the child via phone.

217
00:07:06,830 --> 00:07:10,140
[Emily Marquand] and there have been numerous

218
00:07:10,140 --> 00:07:13,180
[Emily Marquand] situations over the years

219
00:07:13,180 --> 00:07:16,350
[Emily Marquand] related to the mother and the

220
00:07:16,350 --> 00:07:16,830
[Emily Marquand] child's

221
00:07:16,830 --> 00:07:18,800
[Emily Marquand] relationship. There have been

222
00:07:18,800 --> 00:07:20,760
[Emily Marquand] numerous reports captured under

223
00:07:20,760 --> 00:07:23,910
[Emily Marquand] the mother's case and there

224
00:07:23,910 --> 00:07:24,110
[Emily Marquand] have

225
00:07:24,110 --> 00:07:26,550
[Emily Marquand] been a total of 32 calls to the

226
00:07:26,550 --> 00:07:29,010
[Emily Marquand] agency with 19 of those calls

227
00:07:29,010 --> 00:07:31,630
[Emily Marquand] being assigned for assessment.

228
00:07:32,190 --> 00:07:34,350
[Emily Marquand] These are related to strictly

229
00:07:34,350 --> 00:07:36,700
[Emily Marquand] just Ms. Penn's case. There is

230
00:07:36,700 --> 00:07:38,070

[Emily Marquand] another case open under father

231
00:07:38,070 --> 00:07:38,190
[Emily Marquand] 's

232
00:07:38,190 --> 00:07:40,120
[Emily Marquand] name as father does have sole

233
00:07:40,120 --> 00:07:42,230
[Emily Marquand] custody of the child related to

234
00:07:42,230 --> 00:07:44,510
[Emily Marquand] the domestic relations case.

235
00:07:45,070 --> 00:07:46,140
[Emily Marquand] However, these calls of

236
00:07:46,140 --> 00:07:47,840
[Emily Marquand] concerns are concerns for

237
00:07:47,840 --> 00:07:49,710
[Emily Marquand] neglect, threat of harm,

238
00:07:49,710 --> 00:07:50,830
[Emily Marquand] exposure to violence,

239
00:07:50,830 --> 00:07:52,350
[Emily Marquand] and concerns for physical abuse

240
00:07:52,350 --> 00:07:53,820
[Emily Marquand] and substance use by the mother

241
00:07:53,820 --> 00:07:56,990
[Emily Marquand] . This child was in ODHS custody

242
00:07:56,990 --> 00:07:57,150
[Emily Marquand] from

243
00:07:58,030 --> 00:08:01,900
[Emily Marquand] January of 2020 to May of 2021.

244
00:08:01,900 --> 00:08:04,330
[Emily Marquand] Ultimately, this child and her

245
00:08:04,330 --> 00:08:06,570
[Emily Marquand] full sibling were returned to

246
00:08:06,570 --> 00:08:06,830
[Emily Marquand] their

247
00:08:06,830 --> 00:08:08,270
[Emily Marquand] father's care. Father had

248
00:08:08,270 --> 00:08:09,770
[Emily Marquand] engaged in all of the services

249
00:08:09,770 --> 00:08:11,210
[Emily Marquand] and had done what he needed to

250
00:08:11,210 --> 00:08:11,710
[Emily Marquand] do to get

251
00:08:11,710 --> 00:08:13,110
[Emily Marquand] his girls back. However,

252
00:08:13,110 --> 00:08:14,650

[Emily Marquand] through the life of that case,

253
00:08:14,650 --> 00:08:16,010
[Emily Marquand] the mother did not engage in

254
00:08:16,010 --> 00:08:16,750
[Emily Marquand] any services

255
00:08:16,750 --> 00:08:19,070
[Emily Marquand] and actually failed to do any

256
00:08:19,070 --> 00:08:21,850
[Emily Marquand] of the services. Those services

257
00:08:21,850 --> 00:08:24,210
[Emily Marquand] were ordered were parenting

258
00:08:24,210 --> 00:08:24,650
[Emily Marquand] classes,

259
00:08:24,650 --> 00:08:26,370
[Emily Marquand] stable housing, visitation, a

260
00:08:26,370 --> 00:08:28,260
[Emily Marquand] neuropsychological, maintaining

261
00:08:28,260 --> 00:08:29,710
[Emily Marquand] contact with the agency,

262
00:08:29,710 --> 00:08:30,490
[Emily Marquand] engaging in

263
00:08:30,490 --> 00:08:32,320
[Emily Marquand] DV counseling, sorry, victim

264
00:08:32,320 --> 00:08:34,230
[Emily Marquand] services or survivor services,

265
00:08:34,230 --> 00:08:36,150
[Emily Marquand] signing releases of information

266
00:08:36,150 --> 00:08:36,410
[Emily Marquand] ,

267
00:08:36,410 --> 00:08:38,040
[Emily Marquand] and engaging in the children's

268
00:08:38,040 --> 00:08:39,960
[Emily Marquand] services. Again, mother did not

269
00:08:39,960 --> 00:08:41,610
[Emily Marquand] engage in these. Ultimately,

270
00:08:41,610 --> 00:08:44,440
[Emily Marquand] the agency petitioned or motion

271
00:08:44,440 --> 00:08:47,270
[Emily Marquand] ed to dismiss the case, but that

272
00:08:47,270 --> 00:08:49,370
[Emily Marquand] was at the point in time

273
00:08:49,370 --> 00:08:50,640
[Emily Marquand] where father did have sole

274
00:08:50,640 --> 00:08:52,130

[Emily Marquand] custody of the children and he

275
00:08:52,130 --> 00:08:53,580
[Emily Marquand] was granted that in February of

276
00:08:53,580 --> 00:08:54,410
[Emily Marquand] 2021.

277
00:08:56,970 --> 00:08:56,970
During this assessment, the

278
00:08:56,970 --> 00:08:59,510
[Emily Marquand] agency did have conversations

279
00:08:59,510 --> 00:09:01,530
[Emily Marquand] with mother about the child's

280
00:09:01,530 --> 00:09:03,980
[Emily Marquand] suicidal ideations. The mother

281
00:09:03,980 --> 00:09:06,040
[Emily Marquand] refused to pick this child up

282
00:09:06,040 --> 00:09:08,250
[Emily Marquand] from the hospital. The mother

283
00:09:08,250 --> 00:09:08,490
[Emily Marquand] was

284
00:09:08,490 --> 00:09:11,160
[Emily Marquand] also made aware of the concerns

285
00:09:11,160 --> 00:09:13,640
[Emily Marquand] that brought the child to the

286
00:09:13,640 --> 00:09:16,440
[Emily Marquand] hospital and refused to really

287
00:09:16,440 --> 00:09:16,730
[Emily Marquand] engage

288
00:09:16,730 --> 00:09:19,090
[Emily Marquand] with the agency and protect her

289
00:09:19,090 --> 00:09:21,620
[Emily Marquand] child. She has made very little

290
00:09:21,620 --> 00:09:24,570
[Emily Marquand] attempts to have any visitation

291
00:09:24,570 --> 00:09:25,820
[Emily Marquand] in terms of in-person visit

292
00:09:25,820 --> 00:09:27,130
[Speaker 3] ation or engagement with the

293
00:09:27,130 --> 00:09:28,120
[Speaker 3] agency that have been

294
00:09:28,120 --> 00:09:30,410
[Speaker 3] meaningful. As

295
00:09:30,410 --> 00:09:33,380
[Speaker 3] noted earlier, that mother has

296
00:09:33,380 --> 00:09:36,240

[Speaker 3] engaged in emails to the agency

297
00:09:36,240 --> 00:09:38,970
[Emily Marquand] more demands than anything and

298
00:09:38,970 --> 00:09:39,130
[Emily Marquand] has

299
00:09:39,130 --> 00:09:40,480
[Emily Marquand] refused to meet with the agency

300
00:09:40,480 --> 00:09:41,770
[Emily Marquand] and understand and learn this

301
00:09:41,770 --> 00:09:42,750
[Emily Marquand] child's behaviors and

302
00:09:42,750 --> 00:09:43,450
[Emily Marquand] understand and

303
00:09:43,450 --> 00:09:45,610
[Emily Marquand] learn what the child and the

304
00:09:45,610 --> 00:09:47,690
[Emily Marquand] trauma that this child has

305
00:09:47,690 --> 00:09:49,450
[Emily Marquand] engaged in or has been

306
00:09:49,450 --> 00:09:50,090
[Emily Marquand] subjected to,

307
00:09:50,090 --> 00:09:53,190
[Emily Marquand] my apologies. The agency does

308
00:09:53,190 --> 00:09:56,050
[Emily Marquand] have concerns that the mother

309
00:09:56,050 --> 00:09:59,450
[Emily Marquand] has coached this child. There

310
00:09:59,450 --> 00:09:59,770
[Emily Marquand] has been

311
00:09:59,770 --> 00:10:02,150
[Emily Marquand] ongoing concerns over the years

312
00:10:02,150 --> 00:10:04,230
[Emily Marquand] related to that and that the

313
00:10:04,230 --> 00:10:06,330
[Emily Marquand] mother at this point in time

314
00:10:06,330 --> 00:10:06,490
[Emily Marquand] does

315
00:10:06,490 --> 00:10:08,290
[Emily Marquand] not have the skills necessary

316
00:10:08,290 --> 00:10:09,980
[Emily Marquand] and does not understand the

317
00:10:09,980 --> 00:10:11,770
[Emily Marquand] specific needs of this child

318

00:10:11,770 --> 00:10:13,700
[Emily Marquand] related to specifically mental

319
00:10:13,700 --> 00:10:15,470
[Emily Marquand] health and the ongoing kind of

320
00:10:15,470 --> 00:10:17,450
[Emily Marquand] tumultuous relationship between

321
00:10:17,450 --> 00:10:18,950
[Emily Marquand] the mother and father related

322
00:10:18,950 --> 00:10:20,800
[Emily Marquand] to custody. Ms. Markpond, what

323
00:10:20,800 --> 00:10:22,330
[AAG Wadia] additional information has the

324
00:10:22,330 --> 00:10:24,000
[AAG Wadia] agency learned regarding Alley

325
00:10:24,000 --> 00:10:25,720
[AAG Wadia] ation 2B which reads the mother

326
00:10:25,720 --> 00:10:27,370
[AAG Wadia] fails to recognize the safety

327
00:10:27,370 --> 00:10:28,160
[AAG Wadia] threats

328
00:10:28,160 --> 00:10:30,080
[AAG Wadia] presented by father, I

329
00:10:30,080 --> 00:10:32,670
[AAG Wadia] apologize for that type of, and

330
00:10:32,670 --> 00:10:34,670
[AAG Wadia] is unwilling or unable to

331
00:10:34,670 --> 00:10:35,040
[AAG Wadia] protect the

332
00:10:35,040 --> 00:10:37,030
[AAG Wadia] child from father's unsafe

333
00:10:37,030 --> 00:10:39,110
[Emily Marquand] behaviors um as noted the day

334
00:10:39,110 --> 00:10:42,130
[Emily Marquand] of the after hours situation

335
00:10:42,130 --> 00:10:42,490
[Emily Marquand] and all

336
00:10:42,490 --> 00:10:44,650
[Emily Marquand] call workers did have contact

337
00:10:44,650 --> 00:10:46,750
[Emily Marquand] with mother eventually i think

338
00:10:46,750 --> 00:10:48,410
[Emily Marquand] it was many hours later

339
00:10:48,410 --> 00:10:50,570
[Emily Marquand] and informed them of what had

340

00:10:50,570 --> 00:10:53,270
[Emily Marquand] been happening um and um which

341
00:10:53,270 --> 00:10:56,890
[Emily Marquand] ultimately led the child to the

342
00:10:56,890 --> 00:10:58,580
[Emily Marquand] hospital in the first place um

343
00:10:58,580 --> 00:11:00,140
[Emily Marquand] related to the altercation

344
00:11:00,140 --> 00:11:02,570
[Emily Marquand] between father and child um

345
00:11:04,010 --> 00:11:05,550
[Emily Marquand] Despite knowing that, the

346
00:11:05,550 --> 00:11:07,230
[Emily Marquand] mother refused to pick up this

347
00:11:07,230 --> 00:11:12,250
[Emily Marquand] child. In addition, since the

348
00:11:12,250 --> 00:11:13,530
[Emily Marquand] dismissal of

349
00:11:13,530 --> 00:11:15,210
[Emily Marquand] the prior dependency case in

350
00:11:15,210 --> 00:11:17,530
[Emily Marquand] 2021, there have been a total

351
00:11:17,530 --> 00:11:19,280
[Emily Marquand] of 20 calls to the hotline

352
00:11:19,280 --> 00:11:20,250
[Emily Marquand] related to

353
00:11:20,250 --> 00:11:23,390
[Emily Marquand] father's case in our system, 10

354
00:11:23,390 --> 00:11:26,040
[Emily Marquand] of which have been assigned.

355
00:11:26,040 --> 00:11:28,540
[Emily Marquand] And those cases have been

356
00:11:28,540 --> 00:11:29,850
[Emily Marquand] related to

357
00:11:29,850 --> 00:11:31,750
[Emily Marquand] to concerns of physical abuse

358
00:11:31,750 --> 00:11:33,740
[Emily Marquand] and maltreatment. The mother

359
00:11:33,740 --> 00:11:34,890
[Emily Marquand] has engaged in those

360
00:11:34,890 --> 00:11:35,730
[Emily Marquand] assessments.

361
00:11:35,730 --> 00:11:37,490
[Emily Marquand] The mother has, I will say

362
00:11:37,490 --> 00:11:39,730
[Emily Marquand] limitedly, has engaged in those

363
00:11:39,730 --> 00:11:41,730
[Emily Marquand] assessments. She has been

364
00:11:41,730 --> 00:11:43,360
[Emily Marquand] put on notice of the concerning

365
00:11:43,360 --> 00:11:44,680
[Emily Marquand] behaviors that have been

366
00:11:44,680 --> 00:11:46,450
[Emily Marquand] happening, especially around

367
00:11:46,450 --> 00:11:48,770
[Emily Marquand] that relationship between child

368
00:11:48,770 --> 00:11:50,960
[Emily Marquand] and father. Mother also has a

369
00:11:50,960 --> 00:11:53,130
[Emily Marquand] very tumultuous relationship

370
00:11:53,130 --> 00:11:55,890
[Emily Marquand] with father and I apologize

371
00:11:55,890 --> 00:11:58,420
[Emily Marquand] excuse me the agency has an

372
00:11:58,420 --> 00:12:00,630
[Emily Marquand] obligation to inform

373
00:12:00,630 --> 00:12:02,370
[Emily Marquand] legal and biological parents of

374
00:12:02,370 --> 00:12:03,720
[Emily Marquand] all of these assessments

375
00:12:03,720 --> 00:12:05,010
[Emily Marquand] happening and so again

376
00:12:05,010 --> 00:12:06,760
[Emily Marquand] despite knowing all of this is

377
00:12:06,760 --> 00:12:08,580
[Emily Marquand] despite the history the mother

378
00:12:08,580 --> 00:12:09,390
[Emily Marquand] has failed to

379
00:12:09,390 --> 00:12:11,440
[Emily Marquand] modify the domestic relations

380
00:12:11,440 --> 00:12:13,530
[Emily Marquand] order in which granted father's

381
00:12:13,530 --> 00:12:14,670
[Emily Marquand] old custody and I

382
00:12:14,670 --> 00:12:16,460
[Emily Marquand] believe mom was supervised

383
00:12:16,460 --> 00:12:17,770
[Emily Marquand] parenting time is my

384
00:12:17,770 --> 00:12:19,470
[Emily Marquand] understanding and she is

385
00:12:19,470 --> 00:12:20,350
[Emily Marquand] to be able to protect this

386
00:12:20,350 --> 00:12:21,980
[AAG Wadia] child. And finally, Ms. Marqu

387
00:12:21,980 --> 00:12:23,690
[AAG Wadia] and, what additional information

388
00:12:23,690 --> 00:12:24,150
[AAG Wadia] has the

389
00:12:24,150 --> 00:12:25,720
[AAG Wadia] agency learned regarding Alley

390
00:12:25,720 --> 00:12:27,190
[AAG Wadia] ation 2C, which reads, the

391
00:12:27,190 --> 00:12:28,790
[AAG Wadia] mother is involved in criminal

392
00:12:28,790 --> 00:12:29,470
[AAG Wadia] activities

393
00:12:29,470 --> 00:12:30,790
[AAG Wadia] which interfere with her

394
00:12:30,790 --> 00:12:32,300
[AAG Wadia] ability to safely parent the

395
00:12:32,300 --> 00:12:33,860
[Emily Marquand] child. Yeah, mother has at

396
00:12:33,860 --> 00:12:34,690
[Emily Marquand] least two open

397
00:12:34,690 --> 00:12:36,090
[Emily Marquand] cases. One is the pending

398
00:12:36,090 --> 00:12:37,740
[Emily Marquand] charges of unlawful possession

399
00:12:37,740 --> 00:12:39,380
[Emily Marquand] of methamphetamine and theft in

400
00:12:39,380 --> 00:12:39,670
[Emily Marquand] the

401
00:12:39,670 --> 00:12:41,260
[Emily Marquand] first degree from September of

402
00:12:41,260 --> 00:12:43,400
[Emily Marquand] 2024. Mother currently has an

403
00:12:43,400 --> 00:12:44,830
[Emily Marquand] active warrant out for her

404
00:12:44,830 --> 00:12:46,810
[Emily Marquand] arrest and this has been active

405
00:12:46,810 --> 00:12:49,620
[Emily Marquand] since June of 2025, June 23rd

406
00:12:49,620 --> 00:12:52,510
[Emily Marquand] of 2025. She also has the

407
00:12:52,510 --> 00:12:52,830
[Emily Marquand] pending

408
00:12:52,830 --> 00:12:54,140
[Emily Marquand] theft in the first degree

409
00:12:54,140 --> 00:12:56,410
[Emily Marquand] charge from May of 2024. Mother

410
00:12:56,410 --> 00:12:58,060
[Emily Marquand] failed to appear to her hearing

411
00:12:58,060 --> 00:12:59,050
[Emily Marquand] on June 23

412
00:12:59,050 --> 00:13:01,570
[Emily Marquand] of 2025 for the theft of the

413
00:13:01,570 --> 00:13:03,630
[Emily Marquand] first degree but there was no

414
00:13:03,630 --> 00:13:05,010
[Emily Marquand] warrant issued in my

415
00:13:05,010 --> 00:13:06,170
[Emily Marquand] understanding

416
00:13:06,170 --> 00:13:08,520
[Emily Marquand] for that case likely because

417
00:13:08,520 --> 00:13:10,860
[Emily Marquand] there was the warrant for the

418
00:13:10,860 --> 00:13:13,290
[Emily Marquand] possession of meth and theft

419
00:13:13,290 --> 00:13:15,670
[Emily Marquand] charged from September of 24.

420
00:13:15,670 --> 00:13:18,350
[Emily Marquand] These are still open cases. The

421
00:13:18,350 --> 00:13:21,990
[Emily Marquand] mother hasn't cleared her

422
00:13:21,990 --> 00:13:23,960
[Emily Marquand] warrant for those cases. There

423
00:13:23,960 --> 00:13:26,940
[Emily Marquand] are significant concerns around

424
00:13:26,940 --> 00:13:29,700
[Emily Marquand] the substance use, but at this

425
00:13:29,700 --> 00:13:32,300
[Emily Marquand] time, these are pending and

426
00:13:32,300 --> 00:13:35,000
[Emily Marquand] open cases, and the agency has

427
00:13:35,000 --> 00:13:37,860
[Emily Marquand] not had meaningful contact with

428
00:13:37,860 --> 00:13:40,520
[Emily Marquand] the mother to fully assess her

429
00:13:40,520 --> 00:13:42,250
[Emily Marquand] and get information about her

430
00:13:42,250 --> 00:13:43,050
[Emily Marquand] substance use.

431
00:13:43,050 --> 00:13:43,970
[Speaker 3] but these are concerning

432
00:13:43,970 --> 00:13:44,530
[Speaker 3] behaviors.

433
00:13:45,410 --> 00:13:46,690
[AAG Wadia] Does the agency have any reason

434
00:13:46,690 --> 00:13:47,940
[AAG Wadia] to believe that Amira is an

435
00:13:47,940 --> 00:13:48,570
[AAG Wadia] Indian child

436
00:13:48,570 --> 00:13:49,660
[AAG Wadia] for the purposes of the Indian

437
00:13:49,660 --> 00:13:50,820
[AAG Wadia] Child Welfare Act or the Oregon

438
00:13:50,820 --> 00:13:51,830
[AAG Wadia] Indian Child Welfare Act?

439
00:13:51,970 --> 00:13:53,180
[Emily Marquand] There is no reason to believe

440
00:13:53,180 --> 00:13:54,610
[Emily Marquand] that equal or equal or why.

441
00:13:55,530 --> 00:13:56,280
[AAG Wadia] Ms. Marquant, to best of your

442
00:13:56,280 --> 00:13:58,430
[AAG Wadia] knowledge, is mother an active

443
00:13:58,430 --> 00:13:59,610
[AAG Wadia] service member

444
00:13:59,610 --> 00:14:00,930
[AAG Wadia] subject to the Service Member

445
00:14:00,930 --> 00:14:01,870
[AAG Wadia] Civil Relief Act?

446
00:14:02,210 --> 00:14:02,510
[AAG Wadia] No.

447
00:14:03,010 --> 00:14:03,930
[AAG Wadia] To best of your knowledge, is

448
00:14:03,930 --> 00:14:05,370
[AAG Wadia] there any reason why mother's

449
00:14:05,370 --> 00:14:07,370
[AAG Wadia] appearance today is out of her,

450
00:14:07,750 --> 00:14:08,770
[AAG Wadia] non-appearance today, is out of

451
00:14:08,770 --> 00:14:09,490
[AAG Wadia] her control?

452
00:14:10,210 --> 00:14:10,450
No.

453
00:14:11,190 --> 00:14:11,970
[AAG Wadia] I have no further questions,

454
00:14:11,970 --> 00:14:12,490
[AAG Wadia] Judge.

455
00:14:13,050 --> 00:14:15,450
[Judge Rini] All right. Ms. Moles and Mr. L

456
00:14:15,450 --> 00:14:17,690
[Judge Rini] otzke, anything you wish to add

457
00:14:17,690 --> 00:14:20,310
[Judge Rini] regarding the default fact

458
00:14:20,310 --> 00:14:20,790
[Judge Rini] basis?

459
00:14:20,790 --> 00:14:23,410
[Judge Rini] All right. Based upon the

460
00:14:23,410 --> 00:14:26,070
[Judge Rini] testimony received and the

461
00:14:26,070 --> 00:14:31,360
[Judge Rini] court is...okay, let me back up

462
00:14:31,360 --> 00:14:32,850
[Judge Rini] a little bit. I've pulled up so

463
00:14:32,850 --> 00:14:34,090
[Judge Rini] many files right now.

464
00:14:43,050 --> 00:14:51,610
[Judge Rini] All right, I want to. I'll take

465
00:14:51,610 --> 00:14:56,620
judicial notice of the fact

466
00:14:56,620 --> 00:15:00,970
[Judge Rini] that she has a warrant out on

467
00:15:00,970 --> 00:15:11,050
[Judge Rini] 24 CR 49043. And.

468
00:15:13,050 --> 00:15:27,740
I think there was one other one

469
00:15:27,740 --> 00:15:34,830
[Judge Rini] . Okay. So as to mom and just f

470
00:15:34,830 --> 00:15:39,410
[Judge Rini] leshing out some of the diligent

471
00:15:39,410 --> 00:15:42,170
[Judge Rini] efforts finding. I am noting

472
00:15:42,170 --> 00:15:44,450
[Judge Rini] that not only do I have your

473
00:15:44,450 --> 00:15:47,070
[Judge Rini] affidavit and your filings as

474
00:15:47,070 --> 00:15:47,550
[Judge Rini] to your

475
00:15:47,550 --> 00:15:49,280
[Judge Rini] efforts, I will note also mom

476
00:15:49,280 --> 00:15:51,100
[Judge Rini] actively avoiding service and

477
00:15:51,100 --> 00:15:52,920
[Judge Rini] has an active warrant. Mother

478
00:15:52,920 --> 00:15:53,450
[Judge Rini] is clearly

479
00:15:53,450 --> 00:15:54,930
[Judge Rini] aware of the proceedings. She

480
00:15:54,930 --> 00:15:56,370
[Judge Rini] has been submitting motions,

481
00:15:56,370 --> 00:15:57,640
[Judge Rini] emailing the court staff,

482
00:15:57,640 --> 00:15:58,410
[Judge Rini] including the

483
00:15:58,410 --> 00:16:00,170
[Judge Rini] deputy trial court

484
00:16:00,170 --> 00:16:03,450
[Judge Rini] administrator. I will also note

485
00:16:03,450 --> 00:16:06,120
[Judge Rini] because for all files, files

486
00:16:06,120 --> 00:16:07,730
[Judge Rini] get linked in the

487
00:16:07,730 --> 00:16:11,510
[Judge Rini] system. I am also aware that,

488
00:16:11,510 --> 00:16:15,580
[Judge Rini] well, interesting to note, when

489
00:16:15,580 --> 00:16:18,690
[Judge Rini] I read, I think it was Barr

490
00:16:18,690 --> 00:16:19,490
[Judge Rini] ister

491
00:16:19,490 --> 00:16:20,780
[Judge Rini] Legal Services did one of your

492
00:16:20,780 --> 00:16:22,100
[Judge Rini] attempted affidavits, and he

493
00:16:22,100 --> 00:16:23,350
[Judge Rini] described the person who

494
00:16:23,350 --> 00:16:23,590
[Judge Rini] answered

495
00:16:23,590 --> 00:16:25,600
[Judge Rini] the door at the one place, who,

496
00:16:25,600 --> 00:16:27,090
[Judge Rini] by the way, matches the

497
00:16:27,090 --> 00:16:29,150
[Judge Rini] description of the daddy of her

498
00:16:29,150 --> 00:16:31,450
[Judge Rini] child, Feliciana, who has a

499
00:16:31,450 --> 00:16:33,660
[Judge Rini] warrant out and attorney and

500
00:16:33,660 --> 00:16:35,780
[Judge Rini] date, though, for, lo and

501
00:16:35,780 --> 00:16:36,650
[Judge Rini] behold,

502
00:16:36,810 --> 00:16:38,300
[Judge Rini] They're co-defendants for a

503
00:16:38,300 --> 00:16:40,360
[Judge Rini] retail theft case, and he's got

504
00:16:40,360 --> 00:16:42,630
[Judge Rini] a TSI right now to address that

505
00:16:42,630 --> 00:16:42,930
[Judge Rini] warrant,

506
00:16:43,390 --> 00:16:44,320
[Judge Rini] which is for contempt for

507
00:16:44,320 --> 00:16:46,290
[Judge Rini] having contact with Ms. Penn.

508
00:16:46,590 --> 00:16:48,490
[Judge Rini] And also noting that Ms. Penn

509
00:16:48,490 --> 00:16:50,530
[Judge Rini] has attempted to file habeas

510
00:16:50,530 --> 00:16:52,550
[Judge Rini] corpus motions to get him out

511
00:16:52,550 --> 00:16:53,730
[Judge Rini] of custody.

512
00:16:55,230 --> 00:16:57,860
[Judge Rini] Very complex web of stuff going

513
00:16:57,860 --> 00:16:59,330
[Judge Rini] on here.

514
00:17:00,170 --> 00:17:02,180
[Judge Rini] but she clearly knows and the

515
00:17:02,180 --> 00:17:03,950
[Judge Rini] fact that she is actively

516
00:17:03,950 --> 00:17:06,170
[Judge Rini] avoiding service does not stop

517
00:17:06,170 --> 00:17:06,330
[Judge Rini] the

518
00:17:06,330 --> 00:17:08,180
[Judge Rini] proceedings from going forward

519
00:17:08,180 --> 00:17:09,950
[Judge Rini] the agency has definitely made

520
00:17:09,950 --> 00:17:11,690
[Judge Rini] diligent efforts was the foster

521
00:17:11,690 --> 00:17:13,670
[Judge Rini] parent notified of today's

522
00:17:13,670 --> 00:17:15,920
[Judge Rini] hearing yes okay i'll note that

523
00:17:15,920 --> 00:17:18,170
[Judge Rini] but no foster parent appeared

524
00:17:26,080 --> 00:17:27,840
[Judge Rini] I will also note that in the

525
00:17:27,840 --> 00:17:29,950
[Judge Rini] dismissal of Feliciano's case

526
00:17:29,950 --> 00:17:32,360
[Judge Rini] in Multnomah County, Judge Troy

527
00:17:32,360 --> 00:17:34,330
[Judge Rini] clearly was not happy, wrote

528
00:17:34,330 --> 00:17:36,230
[Judge Rini] multiple paragraphs about his

529
00:17:36,230 --> 00:17:38,190
[Judge Rini] concerns about the lethality of

530
00:17:38,190 --> 00:17:39,800
[Judge Rini] domestic violence in that

531
00:17:39,800 --> 00:17:40,770
[Judge Rini] household.

532
00:17:40,770 --> 00:17:42,380
[Judge Rini] That was not part of this case

533
00:17:42,380 --> 00:17:44,210
[Judge Rini] with mom and this father. It's

534
00:17:44,210 --> 00:17:45,290
[Judge Rini] part of the jurisdiction.

535
00:17:46,030 --> 00:17:48,200
[Judge Rini] But this is a mother who is not

536
00:17:48,200 --> 00:17:51,190
[Judge Rini] unfamiliar with the dependency

537
00:17:51,190 --> 00:17:52,290
[Judge Rini] system.

538
00:17:53,830 --> 00:17:55,190
[Judge Rini] I have no reason to believe the

539
00:17:55,190 --> 00:17:56,320
[Judge Rini] Indian Child Welfare Act

540
00:17:56,320 --> 00:17:57,530
[Judge Rini] federal or state applied.

541
00:17:57,630 --> 00:17:58,390
[Judge Rini] Is anyone else?

542
00:17:58,630 --> 00:17:59,560
[Judge Rini] I did not see anything in the

543
00:17:59,560 --> 00:18:00,250
[Judge Rini] paperwork.

544
00:18:00,710 --> 00:18:02,490
[Judge Rini] Child is under the age of 18.

545
00:18:02,630 --> 00:18:03,630
[Judge Rini] Venue is proper.

546
00:18:04,600 --> 00:18:05,330
[Judge Rini] This course has jurisdiction

547
00:18:05,330 --> 00:18:07,160
[Judge Rini] under the Uniform Child Custody

548
00:18:07,160 --> 00:18:09,270
[Judge Rini] Jurisdiction Enforcement Act.

549
00:18:10,130 --> 00:18:12,010
[Judge Rini] I will find that the state has

550
00:18:12,010 --> 00:18:13,770
[Judge Rini] proven for mom.

551
00:18:14,630 --> 00:18:17,670
[Judge Rini] That was allegations A, B, and

552
00:18:17,670 --> 00:18:18,290
[Judge Rini] C.

553
00:18:23,830 --> 00:18:28,530
[Judge Rini] Let's see. Dad made his

554
00:18:28,530 --> 00:18:38,470
[Judge Rini] admissions back on October 14.

555
00:18:38,470 --> 00:18:49,230
[Judge Rini] Based upon that, child is found

556
00:18:49,230 --> 00:18:50,440
[Judge Rini] within the jurisdiction of the

557
00:18:50,440 --> 00:18:50,830
[Judge Rini] court.

558
00:18:51,830 --> 00:18:53,230
[Judge Rini] All right. Are the parties

559
00:18:53,230 --> 00:18:54,030
[Judge Rini] prepared to proceed to

560
00:18:54,030 --> 00:18:55,890
[Judge Rini] disposition? Yes, Your Honor.

561
00:18:55,890 --> 00:18:58,050
[Judge Rini] All right. I have been handed

562
00:18:58,050 --> 00:19:00,580
[Judge Rini] what will be marked as State's

563
00:19:00,580 --> 00:19:03,290
[Judge Rini] Exhibit 1, consisting of the

564
00:19:03,290 --> 00:19:05,920
[Judge Rini] October 30th letter to the

565
00:19:05,920 --> 00:19:08,190
[Judge Rini] court and a proposed action

566
00:19:08,190 --> 00:19:11,080
[Judge Rini] agreement for each parent. What

567
00:19:11,080 --> 00:19:13,450
[Judge Rini] would you like to tell me?

568
00:19:13,690 --> 00:19:14,990
[AAG Wadia] At this point in time, Judge,

569
00:19:14,990 --> 00:19:16,240
[AAG Wadia] the agency does respectfully

570
00:19:16,240 --> 00:19:17,390
[AAG Wadia] request the court order the

571
00:19:17,390 --> 00:19:17,810
[AAG Wadia] services

572
00:19:17,810 --> 00:19:19,970
[AAG Wadia] as outlined on the service

573
00:19:19,970 --> 00:19:22,020
[AAG Wadia] checklist as to mother and

574
00:19:22,020 --> 00:19:22,930
[AAG Wadia] father.

575
00:19:23,190 --> 00:19:25,340
[AAG Wadia] I believe Mr. Davis previously

576
00:19:25,340 --> 00:19:27,480
[AAG Wadia] indicated a stipulation to the

577
00:19:27,480 --> 00:19:29,750
[AAG Wadia] psychological evaluation.

578
00:19:31,150 --> 00:19:31,850
[AAG Wadia] At this point in time, if Ms.

579
00:19:31,850 --> 00:19:34,110
[AAG Wadia] Marquand is still under oath, I

580
00:19:34,110 --> 00:19:34,860
[AAG Wadia] would ask her to provide

581
00:19:34,860 --> 00:19:35,970
[AAG Wadia] some updates and testimony.

582
00:19:36,310 --> 00:19:36,910
[AAG Wadia] Ms. Marquand?

583
00:19:36,910 --> 00:19:41,260
[Emily Marquand] Your Honor, the agency has

584
00:19:41,260 --> 00:19:46,110
[Emily Marquand] attempted to have contact with

585
00:19:46,110 --> 00:19:49,670
[Emily Marquand] mother. Again, most of these

586
00:19:49,670 --> 00:19:52,430
[Emily Marquand] contacts is more of demands by

587
00:19:52,430 --> 00:19:55,080
[Emily Marquand] mother and she stated that she

588
00:19:55,080 --> 00:19:57,250
[Emily Marquand] will only meet with the

589
00:19:57,250 --> 00:20:00,250
[Emily Marquand] agency once these demands are

590
00:20:00,250 --> 00:20:03,390
[Emily Marquand] kind of fulfilled. The child

591
00:20:03,390 --> 00:20:05,430
[Emily Marquand] has been at the relative

592
00:20:05,430 --> 00:20:06,530
[Emily Marquand] resource parent

593
00:20:07,330 --> 00:20:09,490
[Emily Marquand] since the onset of this case.

594
00:20:09,490 --> 00:20:12,180
[Emily Marquand] The child is doing well. The

595
00:20:12,180 --> 00:20:15,820
[Emily Marquand] child has stated that she does

596
00:20:15,820 --> 00:20:16,050
[Emily Marquand] want

597
00:20:16,050 --> 00:20:18,210
[Emily Marquand] contact with dad and that she,

598
00:20:18,210 --> 00:20:20,260
[Emily Marquand] you know, on the onset of this

599
00:20:20,260 --> 00:20:22,210
[Speaker 3] case didn't want to go home

600
00:20:22,210 --> 00:20:22,360
[Speaker 3] back

601
00:20:22,360 --> 00:20:23,380
[Speaker 3] to dad. I think that

602
00:20:23,380 --> 00:20:24,850
[Speaker 3] relationship with dad is a much

603
00:20:24,850 --> 00:20:25,950
[Speaker 3] stronger bond than the

604
00:20:25,950 --> 00:20:26,930
[Speaker 3] relationship with

605
00:20:26,930 --> 00:20:28,790
[Speaker 3] mother that this child has but

606
00:20:28,790 --> 00:20:30,580
[Speaker 3] ultimately she has also said

607
00:20:30,580 --> 00:20:32,450
[Speaker 3] that she will go live with her

608
00:20:32,450 --> 00:20:32,840
[Speaker 3] mother

609
00:20:32,840 --> 00:20:34,180
[Speaker 3] but wants to do family

610
00:20:34,180 --> 00:20:36,230
[Speaker 3] counseling first before that.

611
00:20:36,230 --> 00:20:38,110
[Speaker 3] Obviously mom has not engaged

612
00:20:38,110 --> 00:20:38,690
[Speaker 3] with the

613
00:20:38,690 --> 00:20:40,180
[Speaker 3] agency so that may take some

614
00:20:40,180 --> 00:20:41,600
[Speaker 3] time in order to kind of get

615
00:20:41,600 --> 00:20:43,330
[Speaker 3] set up but the child is willing

616
00:20:43,330 --> 00:20:43,410
[Speaker 3] and

617
00:20:43,410 --> 00:20:44,990
[Speaker 3] wanting to engage in that

618
00:20:44,990 --> 00:20:47,030
[Speaker 3] service. My understanding is

619
00:20:47,030 --> 00:20:49,940
[Speaker 3] with both parents and while the

620
00:20:49,940 --> 00:20:51,170
[Speaker 3] agency didn't

621
00:20:51,170 --> 00:20:54,500
[Speaker 3] check that box on the checklist

622
00:20:54,500 --> 00:20:57,940
[Speaker 3] of kind of therapeutic family

623
00:20:57,940 --> 00:21:00,210
[Speaker 3] therapy the agency is looking

624
00:21:00,210 --> 00:21:01,890
[Emily Marquand] at that as through the route of

625
00:21:01,890 --> 00:21:03,580
[Emily Marquand] the child services child is is

626
00:21:03,580 --> 00:21:05,240
[Emily Marquand] wanting that type of service

627
00:21:05,240 --> 00:21:05,570
[Emily Marquand] and that

628
00:21:05,570 --> 00:21:06,900
[Emily Marquand] will be happening through the

629
00:21:06,900 --> 00:21:08,250
[Emily Marquand] counseling services that the

630
00:21:08,250 --> 00:21:12,130
[Emily Marquand] child is engaged in um father

631
00:21:12,130 --> 00:21:13,410
[Emily Marquand] at the time

632
00:21:13,410 --> 00:21:14,930
[Emily Marquand] of the last hearing was still

633
00:21:14,930 --> 00:21:16,560
[Emily Marquand] in custody he's been since been

634
00:21:16,560 --> 00:21:19,570
[Emily Marquand] released yes as noted um and i

635
00:21:19,570 --> 00:21:20,130
[Emily Marquand] believe

636
00:21:20,130 --> 00:21:21,690
[Emily Marquand] that the no contact order with

637
00:21:21,690 --> 00:21:23,360
[Emily Marquand] child is still in place. It was

638
00:21:23,360 --> 00:21:25,830
[Emily Marquand] not modified. The agency is

639
00:21:25,830 --> 00:21:26,130
[Emily Marquand] working

640
00:21:26,130 --> 00:21:28,290
[Emily Marquand] with the father now that he's

641
00:21:28,290 --> 00:21:30,100
[Emily Marquand] out and child to get some of

642
00:21:30,100 --> 00:21:32,010
the things at the father's

643
00:21:32,010 --> 00:21:32,930
house for the

644
00:21:32,930 --> 00:21:34,450
child that she has wanted. This

645
00:21:34,450 --> 00:21:35,690
has been kind of an ongoing

646
00:21:35,690 --> 00:21:37,000
need for the child, but given

647
00:21:37,000 --> 00:21:37,730
father was

648
00:21:37,730 --> 00:21:38,980
incarcerated, there was kind of

649
00:21:38,980 --> 00:21:40,130
[Speaker 3] some barriers around that.

650
00:21:40,130 --> 00:21:43,430
[Speaker 3] Father has been extremely

651
00:21:43,430 --> 00:21:45,080
[Speaker 3] cooperative,

652
00:21:45,080 --> 00:21:46,110
[Speaker 3] and I want to just note that

653
00:21:46,110 --> 00:21:47,250
[Speaker 3] since father is here, he was

654
00:21:47,250 --> 00:21:48,500
[Speaker 3] really cooperative in the last

655
00:21:48,500 --> 00:21:49,250
[Speaker 3] case too. He

656
00:21:49,250 --> 00:21:52,010
[Emily Marquand] did what he needed to do to get

657
00:21:52,010 --> 00:21:54,810
[Emily Marquand] his children back and you know

658
00:21:54,810 --> 00:21:56,570
[Emily Marquand] as noted in testimony mother

659
00:21:56,570 --> 00:21:56,850
[Emily Marquand] didn't

660
00:21:57,410 --> 00:21:58,830
[Emily Marquand] and so a lot of that case in

661
00:21:58,830 --> 00:22:01,190
[Speaker 3] the prior dependency case was

662
00:22:01,190 --> 00:22:03,730
[Speaker 3] for kind of fighting the system

663
00:22:03,730 --> 00:22:03,970
[Speaker 3] and

664
00:22:05,010 --> 00:22:05,630
[Speaker 3] but father did engage in

665
00:22:05,630 --> 00:22:07,690
[Speaker 3] services father's willing to

666
00:22:07,690 --> 00:22:09,890
[Speaker 3] engage in services he's been in

667
00:22:09,890 --> 00:22:10,610
[Speaker 3] communication

668
00:22:10,610 --> 00:22:13,010
[Speaker 3] with mr milner is the perman

669
00:22:13,010 --> 00:22:15,730
[Speaker 3] ency worker and i think that you

670
00:22:15,730 --> 00:22:18,290
[Speaker 3] know with that no contact order

671
00:22:18,290 --> 00:22:19,790
[Speaker 3] there is that barrier, but once

672
00:22:19,790 --> 00:22:21,290
[Speaker 3] that's lifted, if and when that

673
00:22:21,290 --> 00:22:22,670
[Speaker 3] 's lifted, the agency will

674
00:22:22,670 --> 00:22:24,270
[Speaker 3] work diligently to kind of

675
00:22:24,270 --> 00:22:26,040
[Speaker 3] start those visits and start

676
00:22:26,040 --> 00:22:27,950
[Speaker 3] that in-home planning process

677
00:22:27,950 --> 00:22:28,570
[Speaker 3] between

678
00:22:28,570 --> 00:22:30,040
[Speaker 3] father and child. I have no

679
00:22:30,040 --> 00:22:32,170
[Speaker 3] reason to believe that ICWA or

680
00:22:32,170 --> 00:22:34,650
[Speaker 3] ICWA apply. Grandparents were

681
00:22:34,650 --> 00:22:36,130
[Speaker 3] also notified, or that at least

682
00:22:36,130 --> 00:22:37,440
[Speaker 3] the grandparents that we are

683
00:22:37,440 --> 00:22:39,010
[Speaker 3] aware of were notified as well,

684
00:22:39,310 --> 00:22:40,490
[Speaker 3] including the resource parent.

685
00:22:40,490 --> 00:22:44,590
[Judge Rini] All right, thank you. Ms. Molz?

686
00:22:44,590 --> 00:22:46,290
[Speaker 3] Thank you, Your Honor.

687
00:22:46,290 --> 00:22:49,390
[Speaker 3] I'll just say dad is continuing

688
00:22:49,390 --> 00:22:50,640
[Emily Marquand] to be cooperative as he was in

689
00:22:50,640 --> 00:22:51,430
[Emily Marquand] the last case.

690
00:22:51,570 --> 00:22:54,330
[Emily Marquand] He has already done parenting

691
00:22:54,330 --> 00:22:56,930
[Emily Marquand] classes as set up by DHS.

692
00:22:58,030 --> 00:22:58,710
[Emily Marquand] He also really wants to have

693
00:22:58,710 --> 00:23:00,580
[Emily Marquand] contact with his daughter to

694
00:23:00,580 --> 00:23:01,450
[Emily Marquand] that end.

695
00:23:01,910 --> 00:23:02,710
[Emily Marquand] I've been working with his

696
00:23:02,710 --> 00:23:03,870
[Emily Marquand] criminal attorney.

697
00:23:05,210 --> 00:23:06,180
[Emily Marquand] We filed the competing orders

698
00:23:06,180 --> 00:23:07,990
[Emily Marquand] paperwork, and that was denied

699
00:23:07,990 --> 00:23:08,830
[Emily Marquand] by Judge Guptill.

700
00:23:08,990 --> 00:23:10,560
[Judge Rini] Right, because I think you have

701
00:23:10,560 --> 00:23:12,040
[Judge Rini] to go through the old school

702
00:23:12,040 --> 00:23:12,550
[Judge Rini] process

703
00:23:12,550 --> 00:23:13,990
[Judge Rini] of requesting just the criminal

704
00:23:13,990 --> 00:23:15,110
[Judge Rini] court modification.

705
00:23:16,290 --> 00:23:17,790
[Emily Marquand] All right, so we'll continue

706
00:23:17,790 --> 00:23:19,930
[AAG Wadia] working on that. Maybe a third

707
00:23:19,930 --> 00:23:22,920
[AAG Wadia] try will be successful, finally

708
00:23:22,920 --> 00:23:25,090
[AAG Wadia] . I think that there's still a

709
00:23:25,090 --> 00:23:26,990
[AAG Wadia] lot of interested parties in

710
00:23:26,990 --> 00:23:28,730
[AAG Wadia] this case. The district

711
00:23:28,730 --> 00:23:30,630
[Emily Marquand] attorney may still have some

712
00:23:30,630 --> 00:23:32,670
[Emily Marquand] concerns about that contact,

713
00:23:32,670 --> 00:23:34,410
[Emily Marquand] but if we can have it per DHS

714
00:23:34,410 --> 00:23:36,700
[Emily Marquand] and then supervising, hopefully

715
00:23:36,700 --> 00:23:38,490
[Emily Marquand] that can alleviate some of

716
00:23:38,490 --> 00:23:39,930
[Emily Marquand] those concerns.

717
00:23:39,930 --> 00:23:41,520
[Emily Marquand] And dad is happy to cooperate

718
00:23:41,520 --> 00:23:43,680
[Emily Marquand] with the agency and getting the

719
00:23:43,680 --> 00:23:45,450
[Emily Marquand] child any of the things that

720
00:23:45,450 --> 00:23:47,390
[Emily Marquand] she's needing from the house,

721
00:23:47,390 --> 00:23:49,000
[Emily Marquand] anything that he's needing

722
00:23:49,000 --> 00:23:50,810
[Emily Marquand] moving forward, he's happy to

723
00:23:50,810 --> 00:23:51,210
[Emily Marquand] do.

724
00:23:51,770 --> 00:23:52,460
[Emily Marquand] As you know, he's already

725
00:23:52,460 --> 00:23:53,950
[Emily Marquand] resolved in this case, he didn

726
00:23:53,950 --> 00:23:55,250
[Emily Marquand] 't need to be here, but this

727
00:23:55,250 --> 00:23:56,730
[Emily Marquand] case is important to him, so it

728
00:23:56,730 --> 00:23:57,990
[Emily Marquand] was important for him to be

729
00:23:57,990 --> 00:23:59,240
[Emily Marquand] here and to keep abreast of

730
00:23:59,240 --> 00:24:00,590
[Emily Marquand] what's going on.

731
00:24:01,330 --> 00:24:02,770
[Emily Marquand] And I anticipate continuing in

732
00:24:02,770 --> 00:24:05,170
[Emily Marquand] that vein throughout the case.

733
00:24:06,050 --> 00:24:06,730
[Emily Marquand] Thank you.

734
00:24:06,730 --> 00:24:07,850
[Judge Rini] Mr. Latsky?

735
00:24:09,050 --> 00:24:10,200
Childhood is definitely in

736
00:24:10,200 --> 00:24:11,660
support of a modification of

737
00:24:11,660 --> 00:24:14,250
the release order for her

738
00:24:14,250 --> 00:24:14,670
father.

739
00:24:15,670 --> 00:24:17,270
And we'll support any devotion

740
00:24:17,270 --> 00:24:18,610
for the same.

741
00:24:19,210 --> 00:24:20,710
Otherwise, she's doing well.

742
00:24:22,390 --> 00:24:23,530
Continue in therapy.

743
00:24:27,870 --> 00:24:28,510
Sorry.

744
00:24:39,050 --> 00:24:58,830
[Emily Marquand] I realize that I did not list

745
00:24:58,830 --> 00:24:59,710
[Emily Marquand] the services.

746
00:25:00,710 --> 00:25:02,190
[Judge Rini] Oh, I'm going through that now.

747
00:25:02,190 --> 00:25:02,790
[Judge Rini] Okay, sorry.

748
00:25:09,050 --> 00:25:13,250
[Judge Rini] I'm just filling up the check

749
00:25:13,250 --> 00:25:18,320
[Judge Rini] in the box this is a goal all

750
00:25:18,320 --> 00:25:25,110
[Judge Rini] right you said

751
00:25:25,110 --> 00:25:28,390
[Judge Rini] grandparents were made aware.

752
00:25:28,390 --> 00:25:34,770
All right, at this point in

753
00:25:34,770 --> 00:25:40,390
[Judge Rini] time, child is placed in the

754
00:25:40,390 --> 00:25:40,950
[Judge Rini] legal custody

755
00:25:40,950 --> 00:25:42,020
[Judge Rini] of the Oregon Department of

756
00:25:42,020 --> 00:25:43,250
[Judge Rini] Human Services and Substitute

757
00:25:43,250 --> 00:25:44,450
[Judge Rini] Care. Diligent efforts were

758
00:25:44,450 --> 00:25:44,870
[Judge Rini] made for

759
00:25:44,870 --> 00:25:46,240
[Judge Rini] relative placement as that has

760
00:25:46,240 --> 00:25:47,770
[Judge Rini] occurred. That placement is the

761
00:25:47,770 --> 00:25:49,440
[Judge Rini] least restrictive, most family-

762
00:25:49,440 --> 00:25:49,670
[Judge Rini] like

763
00:25:49,670 --> 00:25:51,560
[Judge Rini] setting. Reasonable efforts

764
00:25:51,560 --> 00:25:53,170
[Judge Rini] have been made to prevent or

765
00:25:53,170 --> 00:25:54,910
[Judge Rini] eliminate the need for removal.

766
00:25:54,910 --> 00:25:55,190
[Judge Rini] I'm

767
00:25:55,190 --> 00:25:57,690
[Judge Rini] noting the contents of Exhibit

768
00:25:57,690 --> 00:25:59,830
[Judge Rini] 1 and also noting mother

769
00:25:59,830 --> 00:26:02,200
[Judge Rini] actively evading DHS despite

770
00:26:02,200 --> 00:26:03,050
[Judge Rini] multiple

771
00:26:03,050 --> 00:26:04,820
[Judge Rini] attempts by the agency. Current

772
00:26:04,820 --> 00:26:06,420
[Judge Rini] case plan is reunification.

773
00:26:06,420 --> 00:26:08,050
[Judge Rini] Backup plan would be given her

774
00:26:08,050 --> 00:26:10,290
[Judge Rini] age or guardianship. Again,

775
00:26:10,290 --> 00:26:12,370
[Judge Rini] child was made war to the court

776
00:26:12,370 --> 00:26:14,690
[Judge Rini] , legal custody, and guardians

777
00:26:14,690 --> 00:26:15,370
[Judge Rini] hip to the

778
00:26:15,370 --> 00:26:17,170
[Judge Rini] agency for out-of-home care the

779
00:26:17,170 --> 00:26:18,870
[Judge Rini] agency shall notify court and

780
00:26:18,870 --> 00:26:19,930
[Judge Rini] attorneys when a

781
00:26:19,930 --> 00:26:21,290
[Judge Rini] child has been returned to a

782
00:26:21,290 --> 00:26:22,820
[Judge Rini] parent or a change in placement

783
00:26:22,820 --> 00:26:23,770
[Judge Rini] make appropriate

784
00:26:23,770 --> 00:26:25,260
[Judge Rini] referrals for the services

785
00:26:25,260 --> 00:26:26,960
[Judge Rini] consult with parents attorney

786
00:26:26,960 --> 00:26:29,610
[Judge Rini] regarding the evaluator

787
00:26:29,610 --> 00:26:31,770
[Judge Rini] maintain regular contact with

788
00:26:31,770 --> 00:26:33,740
[Judge Rini] the providers mom shall visit

789
00:26:33,740 --> 00:26:35,090
[Judge Rini] participate in

790
00:26:35,090 --> 00:26:37,250
[Judge Rini] parent education classes

791
00:26:37,250 --> 00:26:39,250
[Judge Rini] maintain contact with the

792
00:26:39,250 --> 00:26:40,930
[Judge Rini] agency clear and resolve

793
00:26:40,930 --> 00:26:42,230
[Judge Rini] warrants and pending criminal

794
00:26:42,230 --> 00:26:43,540
[Judge Rini] matters and comply with their

795
00:26:43,540 --> 00:26:48,150
[Judge Rini] criminal court cases. For dad,

796
00:26:48,150 --> 00:26:48,850
[Judge Rini] visit

797
00:26:48,850 --> 00:26:50,590
[Judge Rini] when you can, when we can get

798
00:26:50,590 --> 00:26:52,400
[Judge Rini] that all lined up. Do a psych

799
00:26:52,400 --> 00:26:54,150
[Judge Rini] eval, participate in those

800
00:26:54,150 --> 00:26:55,070
[Judge Rini] services.

801
00:26:55,630 --> 00:26:57,490
[Judge Rini] Dad stipulates to the service

802
00:26:57,490 --> 00:27:00,140
[Judge Rini] with a CAPI. Clear and resolve

803
00:27:00,140 --> 00:27:02,710
[Judge Rini] all warrants pending criminal

804
00:27:02,710 --> 00:27:03,130
[Judge Rini] matters,

805
00:27:03,310 --> 00:27:05,150
[Judge Rini] comply with terms of pretrial

806
00:27:05,150 --> 00:27:07,660
[Judge Rini] release, probation, parole, etc

807
00:27:07,660 --> 00:27:10,010
[Judge Rini] . Sign releases and participate

808
00:27:10,010 --> 00:27:10,450
[Judge Rini] in any

809
00:27:10,450 --> 00:27:11,960
[Judge Rini] of the child's therapies when

810
00:27:11,960 --> 00:27:13,760
[Judge Rini] allowed and if necessary. We

811
00:27:13,760 --> 00:27:16,610
[Judge Rini] will go ahead and set a review

812
00:27:16,610 --> 00:27:18,990
[Judge Rini] hearing for February 23rd at 9.

813
00:27:18,990 --> 00:27:24,680
[Judge Rini] And permanency, if we're still

814
00:27:24,680 --> 00:27:31,000
[Judge Rini] involved, will be June 29th at

815
00:27:31,000 --> 00:27:32,350
[Judge Rini] 9.

816
00:27:40,450 --> 00:27:41,650
[Judge Rini] Anything further we need to

817
00:27:41,650 --> 00:27:42,470
[Judge Rini] address today?

818
00:27:42,990 --> 00:27:43,510
[AAG Wadia] No, Your Honor.

819
00:27:44,290 --> 00:27:44,730
[Judge Rini] Okay.

820
00:27:45,150 --> 00:27:46,290
[Judge Rini] Dad, I'm glad you're out.

821
00:27:47,070 --> 00:27:47,800
[Judge Rini] We never want you to go

822
00:27:47,800 --> 00:27:48,750
[Judge Rini] sideways.

823
00:27:50,250 --> 00:27:50,840
[Judge Rini] Everything goes better if you

824
00:27:50,840 --> 00:27:52,650
[Judge Rini] remain out of custody.

825
00:27:53,250 --> 00:27:54,220
[Judge Rini] So your attorneys will keep

826
00:27:54,220 --> 00:27:55,860
[Judge Rini] working regarding the visit

827
00:27:55,860 --> 00:27:56,490
[Judge Rini] ation.

828
00:27:58,930 --> 00:27:59,440
[Judge Rini] And let's see if we can make

829
00:27:59,440 --> 00:28:01,470
[Judge Rini] that happen because I know she

830
00:28:01,470 --> 00:28:02,590
[Judge Rini] really does want to see you.

831
00:28:02,850 --> 00:28:03,850
[Judge Rini] And it can be done in a safe

832
00:28:03,850 --> 00:28:04,830
[Judge Rini] and secure way.

833
00:28:05,210 --> 00:28:05,910
[Judge Rini] We just need to get the

834
00:28:05,910 --> 00:28:07,380
[Judge Rini] criminal court to allow us to

835
00:28:07,380 --> 00:28:08,190
[Judge Rini] control it.

836
00:28:08,890 --> 00:28:09,490
[Judge Rini] All right.

837
00:28:09,530 --> 00:28:10,370
[Judge Rini] That would be the order.

838
00:28:10,450 --> 00:28:11,530
[Judge Rini] THANK YOU, EVERYONE.

EXHIBIT G

Rylan Duffy — Declaration of Diligent Efforts toward Service

October 21, 2025.

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR WASHINGTON COUNTY

Juvenile Department

In the Matter of	Case No. 25JU04261
AL-MIRA AMIRA JAZMINE DAVIS,	DECLARATION OF DILIGENT EFFORTS
A child.	

I, Rylan Duffy, do hereby declare that:

1.

I am a Litigation Legal Assistant for the State of Oregon Department of Justice, Child Advocacy and Protection Division.

2.

My responsibilities include facilitating service of legal documents on parties involved in juvenile dependency matters pending in the Washington County Circuit Court.

3.

On September 8, 2025, the Oregon Department of Human Services (ODHS) filed a dependency petition to establish jurisdiction of the above-named child.

4.

On October 10, 2025, our office completed an Oregon Offender Search for mother. No information regarding the parent was located.

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DEPARTMENT OF JUSTICE
100 SW Market St.
Portland, OR 97201

PHONE: (971) 673-1880
FAX: (971) 673-1888
TTY: (800) 735-2900
Email: Yazmin.Wadia@doj.oregon.gov

5.

On October 10, 2025, our office searched the Washington County Jail, Multnomah County Jail, and Clackamas County Jail rosters for father. No information regarding the parent was located.

6.

On October 10, 2025, our office ran a CLEAR search for mother. The CLEAR search provided the following addresses: 17548 NW Springville Rd. Unit 9, Portland, OR 97229, reported last 8/14/2025.

7.

On October 10, 2025, our office completed a VISOR search for mother in the state of Oregon. Mother was in custody on September 20, 2024 and released at an unknown date. Mother currently has an active warrant for her arrest.

8.

On September 19, 2025, my office prepared a service packet for mother, which included a certified true copy of the Petition along with a certified true copy of the Summons. The service packet was provided to Barrister Support Service to attempt service on mother at 17548 NW Springville Rd. Unit 9, Portland, OR 97229, which was the parent's last known address.

9.

On October 8, 2025, our office received information from Barrister Support Service regarding their attempts to serve the parent. Barrister Support Service indicated that they were unable to successfully serve the parent at 17548 NW Springville Rd. Unit 9, Portland, OR 97229.

10.

Notwithstanding, the investigation described above, and the investigation done by Oregon Department of Human Services (ODHS), the where about of mother cannot be reasonably ascertained and she cannot, therefore, be personally served with the certified true copies of the Summons and Petition.

DEPARTMENT OF JUSTICE
100 SW Market St.
Portland, OR 97201

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Email: Yazmin.Wadia@doj.oregon.gov

I hereby declare that the above statement is true to the best of my knowledge and belief, and that I understand it is made for use as evidence in court and is subject to penalty for perjury.

DATED this 10th day of October, 2025.

/s/ Rylan Duffy
Rylan Duffy
Litigation Legal Assistant, CAPD

DEPARTMENT OF JUSTICE
100 SW Market St.
Portland, OR 97201

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Email: Yazmin.Wadia@doj.oregon.gov

CERTIFICATE OF SERVICE

I hereby certify that on October 21, 2025, I caused to be served a true, exact and full copy of the foregoing Declaration of Diligent Efforts upon the parties hereto, by the method(s) so noted below, to:

Ashle Penn 17458 NW Springville Rd., Apt 9 Portland, OR 97229	Mail Delivery
Yvana Mols 5289 NE Elam Young Pkwy, Ste. 110 Hillsboro, OR 97124 yvanam@hillsborolawgroup.com cc: kymn@hillsborolawgroup.com *Father's Attorney*	E-Mail
Ryan Lhotsky 180 East Main, Suite 210 Hillsboro, OR 97123 ryan@myfamilyfirm.com *Child's Attorney*	E-Mail
Washington County CASA 230 NE 2nd Ave., Ste.1 Hillsboro, OR 97124 casa.office@multco.us	E-Mail

Yazmin Wadia, #OSB141244
Assistant Attorney General

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EXHIBIT H

Kayla Miller — Affidavit Regarding Efforts to Serve Parent

October 28, 2025.

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON

JUVENILE DEPARTMENT

In the Matter of	)	No. 25JU04261
AL-MIRA DAVIS	)	AFFIDAVIT REGARDING EFFORTS
Child	)	TO SERVE PARENT
STATE OF OREGON	)	
County of Washington	)	

I, Kayla Miller, being first duly sworn, say:

1. The Department of Human Services has made a due and diligent search to locate the parent, Ashle Penn, including inquiry on the following dates of the following persons most likely to know where Ashle can be found:

09/06/2025 Caseworker Nicole Bennett attempted to call Ashle at the following numbers:

424-242-3375 – Call could not be completed

971-888-0674 – Number not in service

	424-242-3374 – Call went to voicemail. Caseworker called this number again 6 times and texted the number twice.
09/06/2025	Caseworker Wiengkhone Soumpholphakdy called Ashle again at 424-242-3374. There was no answer and a voicemail was left.
09/06/2025	Caseworker Wiengkhone Soumpholphakdy attempted contact with Ashle at 17548 NW Springville Rd. Apt. 9, Portland, OR 97229 but was unsuccessful. From an unidentified person speaking through the door of the apartment, caseworker was able to gather an additional number for Ashle, 971-379-4231, but the number was out of service. Caseworker called 424-242-3374 two additional times, left a voicemail, and a follow up text with no response.
09/06/2025	Ashle called caseworker Nicole Bennett around 4:30pm where Nicole attempted to make plans to meet with and transport Ashle to her daughter. After saying she would call back, Ashle did not call back and did not answer follow up calls at 4:46pm and 5:28pm.
09/06/2025	Caseworker Nicole Bennett was able to speak with Ashle again at around 5:30pm when she called the hospital but was unable to safety plan or meet in person.
09/07/2025	On call workers attempted contact with Ashle at her residence but were unsuccessful.
09/23/2025	Caseworkers Ashley Crafton and David Milne attempted contact with Ashle at two different apartments in her last known complex but were unsuccessful.
09/30/2025	I received an Absent Parent Search request from Emilie Marquand for Ashle Penn. Included in the request was a last known address of 17458 NW Springville Rd. Apt. 9, Portland, OR 97229. Also included in the request is Ashle has two open criminal cases (24CR27775 & 24CR49043), one with an active warrant.
09/30/2025	I sent a request to the FPLS. **Result: Pending.**
09/30/2025	I searched ORKids for possible addresses and phone numbers for Ashle. 17548 NW Springville Rd. Apt. 9 Portland, OR 97229 16179 NW Brugger Rd. Apt. 303 Portland, OR 97229

424-242-3374, 424-242-3347, 971-888-0674, 360-916-9569, & 360-718-1692

09/30/2025 I searched LexisNexis Accurint for recent addresses and phone numbers for Ashle.

17548 NW Springville Rd. Apt. 9
Portland, OR 97229

16179 NW Brugger Rd. Apt. 303
Portland, OR 97229

247 SE 160th Ave. Apt. B202
Portland, OR 97233

424-242-3374

09/30/2025 I searched the criminal record feature in LexisNexis Accurint and found Ashle's last criminal record is from September 2024. The address listed is 2850 SW Cedar Hills Blvd. Apt 234, Beaverton, OR 97005.

09/30/2025 I searched LexisNexis Accurint for Virtual Identity Report for email addresses.

Ashlepenn.ap3@gmail.com & Ashlepenn215@yahoo.com

09/30/2025 I searched the Ecourt website and confirmed Ashle's last criminal case was from September 2024 and there are currently two open criminal cases. There is an address and phone number listed on Ashle's most recent security release agreement dated 9/20/2024 as well as an additional address on the official receipt.

2850 SW Cedar Hills Blvd. #234
Beaverton, OR 97005

710 NW Autumn Creek Way Apt. L304
Beaverton, OR 97006

424-242-3374

The only open civil case is the Juvenile Dependency case but there is one closed landlord/tenant case from April 2025, and it looks like she was possibly evicted from the apartment located at 17548 NW Springville Rd. Apt. D13 Portland, OR 97229.

09/30/2025 I searched Visor and Ashle is listed as out of custody since 9/20/2024.

09/30/2025	I sent an email to D16 Common Cases for any updated addresses or phone numbers for Ashle. **Results:** Ashle has an open TANF case with an assigned family coach in Beaverton. Mail being sent to 17548 NW Springville Rd. #9 is being returned to sender and Ashle has not provided an updated address. There is a phone number and email on file. Ashle's family coach, Valeria Loera will return to the office on 10/6, and I will connect with her then to see if she can help in contacting Ashle.
	424-242-3374
	Ashlepenn.ap3@gmail.com
09/30/2025	I searched Medicaid Management Information System MMIS. **Results:** I found a case for Ashle with an address and phone number.
	17548 NW Springville Rd. Apt. 9 Portland, OR 97229
	424-242-3374
09/30/2025	I searched DHR for EBT purchases for Ashle and found she has an active EBT card but there is no money on the card. Her purchases show she attempted a purchase today at 1:24pm at a Safeway located at 2177 NW 185th Ave. in Hillsboro and another on 9/28 at a 76 Food mart located at 12128 E Burnside St. Based on previous purchases this month, Ashle frequents the Safeway listed above as well as the following stores:
	Safeway located at 18425 NW West Union Rd.
	Fred Meyer located at 11425 SW Beaverton
	Trader Joes located at 2285 NW 185th Ave.
09/30/2025	I searched the DMV screen in DHR and Ashle has two cars registered to her, but neither are current (one from 2013 and the other from 2023). The address listed for both vehicles is 6220 SE 92nd Ave. Portland, OR 97266.
	2014 Chrysler 300 – License plate 131NGK
	2004 Buick RDV – License plate 223FLZ
10/02/2025	I sent certified restricted letters to the following addresses for Ashle: (list cert/rest# and check status)

Ashle Penn
17458 NW Springville Rd. Apt. 9
Portland, OR 97229
Certified Mail #: 9589 0710 5270 1861 4878 84
Results: Returned to sender 10/8/2025. Apartment was vacant, unable to forward.

Ashle Penn
17548 NW Springville Rd. D13
Portland, OR 97229.
Certified Mail #: 9589 0710 5270 1861 4878 91
Results: Returned to sender 10/8/2025. Attempted delivery but not known at address, unable to forward.

Ashle Penn
16179 NW Brugger Rd. #303
Portland, OR 97229
Certified Mail #: 9589 0710 5270 1861 4879 07
Results: Returned to sender 10/8/2025. Apartment was vacant, unable to forward.

Ashle Penn
247 SE 160th Ave. B202
Portland, OR 97233
Certified Mail #: 9589 0710 5270 1861 4879 14
Results: Returned to sender 10/14/2025. Not deliverable as addressed, unable to forward.

Ashle Penn
6220 SE 92nd Ave.
Portland, OR 97266.
Certified Mail #: 9589 0710 5270 1861 4879 21
Results: Returned to sender 10/22/2025. Not deliverable as addressed, unable to forward.

Ashle Penn
2850 SW Cedar Hills Blvd. #234
Beaverton, OR 97005
Certified Mail #: 9589 0710 5270 1861 4879 38
Results: Returned to sender 10/14/2025. Delivery attempted, not known at address.

Ashle Penn
710 NW Autumn Creek Way Apt. L304
Beaverton, OR 97006
Certified Mail #: 9589 0710 5270 1861 4879 45

Results: Pending.

10/02/2025 I searched Facebook but was unable to find and confirm a page for Ashle.

10/02/2025 I searched the relative spreadsheet in ORKids and found the following relatives for Ashle:

Marie A Penn – Mother
1209 Gary Carmena Ave.
North Las Vegas, NV 89081

Avery L Penn Sr. – Father
1917 Lake Omega St. #A
El Paso, Tx 79936

Brittany M Horsley – Half sister
4268 Pennwood Ave. #1
Las Vegas, NV 89102

Avery Penn Jr – Brother
312 Estella Ave.
Las Vegas, NV 89107

10/02/2025 I searched Overs but found no information for Ashle.

10/03/2025 I mailed a request for information to the Postmaster General (list addresses & which Postmaster):

17458 NW Springville Rd. Apt. 9
Portland, OR 97229
Sent to: Hillsboro Post Office
Results: Response received 10/21/2025. Marked as "mail is delivered to address given"

17548 NW Springville Rd. D13
Portland, OR 97229.
Sent to: Hillsboro Post Office
Results: Response received 10/21/2025. Marked as other, new address 17548 NW Springville Rd. #9. Note states "customer does not have access to mailbox currently, mail not deliverable as addressed."

16179 NW Brugger Rd. #303
Portland, OR 97229
Sent to: Hillsboro Post Office

Results: Response received 10/21/2025. Marked as vacant.

247 SE 160th Ave. B202
Portland, OR 97233
Sent to: Midway Post Office
Results: Response received 10/21/2025. Marked as vacant.

6220 SE 92nd Ave.
Portland, OR 97266.
Sent to: Lents at Eastport Post Office
Results: Pending.

2850 SW Cedar Hills Blvd. #234
Beaverton, OR 97005
Sent to: Beaverton Post Office
Results: Response received 10/20/2025. Marked as "Not known at address given"

710 NW Autumn Creek Way Apt. L304
Beaverton, OR 97006
Sent to: Hillsboro Post Office
Results: Response received 10/20/2025. Marked as "Not known at address given"

10/03/2025 I sent letters to relatives found for Ashle.

Marie A Penn
1209 Gary Carmena Ave.
North Las Vegas, NV 89081

Avery L Penn Sr.
1917 Lake Omega St. #A
El Paso, Tx 79936

Brittany M Horsley
4268 Pennwood Ave. #1
Las Vegas, NV 89102

Avery Penn Jr
312 Estella Ave.
Las Vegas, NV 89107

Results: Letter sent to Avery Penn Jr. was returned to sender 10/23/2025. Not known at address.

10/06/2025 I sent an email to the email addresses found for Ashle on 9/30/2025.

Hi Ashle
My name is Kayla Miller, and I work for Oregon Department of Human Services, Child Welfare, out of the Hillsboro Oregon office. Our caseworker, David Milne, is trying to contact you regarding your child and an open case he is working. It is very important you please contact David at 971-673-5476 or email him at David.Milne@odhs.oregon.gov as soon as possible. Thank you for your time and take care.

Kayla Miller
ODHS Child Welfare
Hillsboro Oregon

Results:

I received a response from Ashle (ashlepenn.ap3@gmail.com) stating she was planning on contacting CPS caseworker Ashley Crafton today, and was confused on how David Milne was involved in the case. I gave her a brief explanation of who David is, told her my role is to connect her with caseworkers to provide her the court summons, and requested she contact David and Ashley as soon as possible (I added them both into the email thread). I then sent a follow up message to Ashley and David regarding my email exchange with Ashle.

10/06/2025 I searched DHR for any purchases for Ashle and found she made the following transactions.

10/2/2025 – Cash Withdrawal at BMO Bank located at 2495 NW Town Center Dr.

10/2/2025 – Cash Purchase at Safeway located at 18425 NW West Union Rd.

10/08/2025 I searched LexisNexis Accurint for new addresses and phone numbers for Ashle, but no new information was found.

10/08/2025 I searched Ecourts for new criminal or civil cases for Ashle, but no new cases were found.

10/08/2025 I searched Visor and Ashle is not currently incarcerated.

10/08/2025 I searched Facebook again for pages for Ashle but was still unable to locate a page for her.

10/08/2025 I searched DHR for new purchases for Ashle, but no new purchases were found.

10/10/2025	I searched LexisNexis Accurint for new addresses and phone numbers for Ashle, but no new information was found.
10/10/2025	I searched Ecourts for new criminal or civil cases for Ashle, but no new cases were found.
10/10/2025	I searched Visor and Ashle is not currently incarcerated.
10/10/2025	I searched DHR for new purchases for Ashle and found she made two purchases on 10/8/2025. 8:06 PM & 8:08PM - 76 Food Mart located at 12128 E Burnside St. in Portland
10/13/2025	I searched TRACS (Transition Referral & Client Self-Sufficiency): **Results:** I found a case for Ashle and there is a note from 10/8/2025, but it is noted it was a late entry from 8/6/2025. Email listed as ashlepenn.ap2@gmail.com
10/13/2025	I sent an email to Ashle's family coach, Valeria Loera, inquiring about contact information for Ashle. **Results:** I received a response back from Valeria with an address and phone number for Ashle. Valeria also let me know Ashle is not responding and the last time she had in person contact with Ashle was in May 2025 and the last time she has had any communication with Ashle was in August 2025. There is being returned mail from the address on file for Ashle. Valeria stated Ashle was in the eviction process last she heard, but it was put on hold as her landlord was sick and unable to move forward with the process. 17548 NW Springville Rd Unit 9 Portland, OR 97229 424-242-3374
10/13/2025	I sent a certified letter to the address provided to me by Ashle's family coach. Ashle Penn 17548 NW Springville Rd. Unit 9 Portland, OR 97229 **Certified Mail #:** 9589 0710 5270 1861 4879 52 **Results:** Returned to sender 10/21/2025. Letter unclaimed and unable to forward.
10/15/2025	I searched LexisNexis Accurint for new addresses or phone numbers for Ashle, but no new information was found.

10/15/2025	I searched Ecourts for new criminal or civil cases for Ashle, but no new cases were found.
10/15/2025	I searched Visor and Ashle is not currently incarcerated or under supervision.
10/15/2025	I searched DHR for new purchases for Ashle and found she last used her card on 10/13 at a Walgreens located at 4816 NW Bethany Blvd. in Portland. Ashle also used her card the same day at QFC located at 4756 NW Bethany Blvd. in Portland.
10/15/2025	I sent an email to caseworkers Ashley Crafton and David Milne inquiring on any contact they have had with Ashle since she responded to my email on 10/6/2025. **Results:** I received a response from both Ashley and David. Ashley – Has not heard from Ashle since her email on 10/6/2025 David – Had a phone conversation with Ashle on 10/14/2025. Ashle requested multiple things be done by ODHS before she would agree to a date and time to meet with Dave and have the summons served to her
10/21/2025	I searched LexisNexis Accurint for new addresses or phone numbers for Ashle, but no new information was found.
10/21/2025	I searched Ecourts for new criminal or civil cases for Ashle, but no new cases were found.
10/21/2025	I searched Visor and Ashle is not currently incarcerated or under supervision.
10/21/2025	I searched Facebook but was still unable to locate a page for Ashle.
10/21/2025	I searched DHR for new purchases for Ashle and found her last purchase was on 10/19/2025 at a Safeway located at 18425 NW West Union Rd. Ashle used the rest of her benefits on this purchase.

3. By reason of the foregoing, service cannot be made by any method of personal or substituted service, nor by office service or service by mail as permitted under ORCP 7.

Kayla Miller

Department of Human Services

Subscribed and sworn to before me this DATED this 28th day of October 2025.

OFFICIAL STAMP
JORDAN JARRE VANOVEREEM
NOTARY PUBLIC - OREGON
COMMISSION NO. 1041144
MY COMMISSION EXPIRES SEPTEMBER 28, 2027

Notary Public for Oregon

EXHIBIT I

Sonya Faulkner emails, June 2, 2026 (10:33 AM and 3:19 PM)

Gmail AshLe' Penn <ashlepenn.ap3@gmail.com>

Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

7 messages

AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, May 15, 2026 at 1:25 PM
To: Sonya.Faulkner@odhs.oregon.gov
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <Skye.F.Hopkins@odhs.oregon.gov>

Greetings Ms. Faulkner et al.,

I write to address ODHS's characterization of my conduct in the May 2026 Safety Plan and the agency's effort to proceed without identifying any specific conduct that creates a current risk of harm sufficient to justify my daughter Al-Mira Davis's placement outside my home.

Even assuming ODHS could characterize my decision as a refusal of access, that characterization cannot be reconciled with the agency's obligation to recognize a parent's right to decline voluntary surveillance and state intrusion into the privacy of the home absent lawful process. More importantly, ODHS has not identified any specific conduct by me that establishes a current risk of harm, nor has it explained any nexus between any alleged concern and a concrete safety threat. A lawful refusal of voluntary access is not, standing alone, a safety failure.

ODHS also cannot convert a requested home visit, which it has not specifically requested of me, into a substitute for judicial authorization. Oregon's dependency framework is court-centered: if the agency seeks compelled access, compelled services, or other coercive relief, it must proceed through the juvenile court with proper notice and service.

Notwithstanding what appears to be retaliation for the exercise of protected rights, the statements in the safety plan are inflammatory and false. They do not accurately reflect my recent and plainly cooperative participation in a two-hour in-home interview of my children. ODHS has had substantial engagement with my family over the last five to six years, and it has not identified any conduct by me that undermines my fitness as a parent.

Please take notice of the attached letter for further response.

Regards,
AshLe' Penn
Mother of Al-Mira Davis
424.242.3374

Safety Plan Follow Up.pdf
251K

AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, May 15, 2026 at 6:59 PM
[redacted]

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, May 15, 2026 at 7:14 PM
[redacted]

[Quoted text hidden]

Safety Plan Follow Up.pdf
251K

FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov> Tue, Jun 2, 2026 at 10:33 AM

To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Good morning AshLe'

At this time, your lack of engagement in the process is limiting the ability to make progress toward the reunification of your child into your home. Your decision to decline access to yourself and your home, along with your refusal to participate fully in the court process, limits ODHS's ability to assess your functioning, protective capacities, and whether your home is now safe for your child. Your engagement is necessary for ODHS to evaluate progress toward reunification.

During our recent call, we discussed your willingness and ability to engage in case planning and the court process. You requested that I obtain a copy of the shelter hearing transcript or recording so I could review it and respond to your concerns. I am currently working to obtain access; however, I cannot guarantee the court will permit its release. This request is separate from the steps you need to take to achieve case goals. My understanding is that you have now received case planning documents to help guide and answer questions related to your daughter's reunification with a parent.

I remain willing to meet with you to discuss the case, hear your questions, and ensure you have what you need to work toward reunification. Your participation is essential, and I want to ensure you can engage in a meaningful way. **We can proceed with the meeting today, June 2nd at 4:00 p.m.,** but the focus will need to be specifically on how we move forward with the steps required for reunification.

You are encouraged to contact an attorney or request court-appointed counsel if you do not currently have one. Concerns related to the conduct of ODHS staff can be addressed through the appropriate internal processes; these matters remain private and are separate from the requirements of your child welfare case.

Please let me know if you would like to meet today.

Thanks,

Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

503-559-0544

OREGON DEPARTMENT OF Human Services

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Friday, May 15, 2026 1:25 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>
Subject: Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Jun 2, 2026 at 2:27 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Ms. Faulkner,

Please find my response to your email of this morning attached. I will be available at 4:00 PM as you proposed. Please review the attached letter in advance of that call.

Regards,

AshLe' Penn

Penn_Faulkner_Reply_25JU04261_20260602.pdf
20K

FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov> Tue, Jun 2, 2026 at 3:19 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Thank you for the clarifying question AshLe, which is your sole purpose of meeting today, given that you have one question I am answering via email rather than a phone call later today. Given the history of our previous phone interactions, I want to make sure that I have the opportunity to fully answer without interruption.

Here is the answer to your question:

What conduct allows ODHS to evaluate you?

I want to provide a clear explanation based on Oregon law and child welfare rules, now that your case is open and the court has taken jurisdiction.

Once the juvenile court found jurisdiction, ODHS became legally responsible for assessing safety, monitoring progress, and supporting the plan the court has ordered. This authority does not come from any new or specific conduct on your part, it comes directly from the court's jurisdictional finding.

Under Oregon statutes and ODHS rules, when a child is in foster care and the court has jurisdiction:

- ODHS is required to complete and update family assessments.
- ODHS is required to meet with parents, review safety concerns, and monitor progress.
- ODHS is required to have regular contact with you and your child.
- ODHS must evaluate whether safety threats have been addressed and whether reunification can safely occur.

These duties come from Oregon law **ORS 419B** and **ORS 409.185**, as well as ODHS rules including **OAR 413-015** (CPS assessment rules) and **OAR 413-080** (ongoing case and monthly contact requirements).

Because jurisdiction has been established by the court, ODHS has the legal authority and the obligation to evaluate your situation as part of ensuring your child's safety and moving the case toward a permanent plan.

Moving forward please work with Skye and David on next steps, they are the experts on your case. **I am canceling our call for today.**

Thanks,

Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

503-559-0544

OREGON DEPARTMENT OF Human Services

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Tuesday, June 2, 2026 2:28 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>; Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>
Subject: Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

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Ms. Faulkner,

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Jul 14, 2026 at 5:09 PM

[redacted]

Forwarded Conversation

Subject: Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

---

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, May 15, 2026 at 1:25 PM
To: <Sonya.Faulkner@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <Skye.F.Hopkins@odhs.oregon.gov>

Greetings Ms. Faulkner et al.,

I write to address ODHS's characterization of my conduct in the May 2026 Safety Plan and the agency's effort to proceed without identifying any specific conduct that creates a current risk of harm sufficient to justify my daughter Al-Mira Davis's placement outside my home.

Even assuming ODHS could characterize my decision as a refusal of access, that characterization cannot be reconciled with the agency's obligation to recognize a parent's right to decline voluntary surveillance and state intrusion into the privacy of the home absent lawful process. More importantly, ODHS has not identified any specific conduct by me that establishes a current risk of harm, nor has it explained any nexus between any alleged concern and a concrete safety threat. A lawful refusal of voluntary access is not, standing alone, a safety failure.

ODHS also cannot convert a requested home visit, which it has not specifically requested of me, into a substitute for judicial authorization. Oregon's dependency framework is court-centered: if the agency seeks compelled access, compelled services, or other coercive relief, it must proceed through the juvenile court with proper notice and service.

Notwithstanding what appears to be retaliation for the exercise of protected rights, the statements in the safety plan are inflammatory and false. They do not accurately reflect my recent and plainly cooperative participation in a two-hour in-home interview of my children. ODHS has had substantial engagement with my family over the last five to six years, and it has not identified any conduct by me that undermines my fitness as a parent.

Please take notice of the attached letter for further response.

Regards,
AshLe' Penn
Mother of Al-Mira Davis
424.242.3374

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, May 15, 2026 at 6:59 PM
To: Helpless inlove <helplessinlove242@gmail.com>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, May 15, 2026 at 7:14 PM
[redacted]

From: **FAULKNER Sonya** <Sonya.FAULKNER@odhs.oregon.gov>
Date: Tue, Jun 2, 2026 at 10:33 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

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During our recent call, we discussed your willingness and ability to engage in case planning and the court process. You requested that I obtain a copy of the shelter hearing transcript or recording so I could review it and respond to your concerns. I am currently working to obtain access; however, I cannot guarantee the court will permit its release. This request is separate from the steps you need to take to achieve case goals. My understanding is that you have now received case planning documents to help guide and answer questions related to your daughter's reunification with a parent.

I remain willing to meet with you to discuss the case, hear your questions, and ensure you have what you need to work toward reunification. Your participation is essential, and I want to ensure you can engage in a meaningful way. **We can proceed with the meeting today, June 2nd at 4:00 p.m.,** but the focus will need to be specifically on how we move forward with the steps required for reunification.

You are encouraged to contact an attorney or request court-appointed counsel if you do not currently have one. Concerns related to the conduct of ODHS staff can be addressed through the appropriate internal processes; these matters remain private and are separate from the requirements of your child welfare case.

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Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

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Ms. Faulkner,

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Regards,

AshLe' Penn

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Date: Tue, Jun 2, 2026 at 3:19 PM
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Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>
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3 attachments

Safety Plan Follow Up.pdf
251K

Safety Plan Follow Up.pdf
251K

Penn_Faulkner_Reply_25JU04261_20260602.pdf
20K

EXHIBIT J

Notice of Tort Claim and § 1983 Pre-Suit Demand

NOTICE OF TORT CLAIM UNDER ORS 30.275 AND 42 U.S.C. § 1983 PRE-SUIT DEMAND

Claimant: AshLe' Penn, natural mother of A.D. (minor, DOB 06/23/2011)
Underlying Matter: *In the Matter of Al-mira Davis*, Wash. Co. Circuit Ct., Juv. No. 25JU04261 **Date of Notice:** July 30, 2026 **Delivery:** Electronic mail and U.S. Mail, certified

---

TO:

- Washington County, Oregon, c/o Courtney Duke-Driesson, County Counsel, CountyCounsel@washingtoncountyor.gov
- Richard E. Moellmer, Trial Court Administrator, Washington County Circuit Court, richard.e.moellmer@ojd.state.or.us
- Kimberly A. Beck, Juvenile Case Processing Clerk / Juvenile Department Lead, Kimberly.A.Beck@ojd.state.or.us
- Scott A. Johnson, Court Clerk, Scott.A.Johnson@ojd.state.or.us
- Oregon Judicial Department, State Court Administrator, Salem, OR
- Oregon Department of Human Services, Child Welfare, c/o Director's Office and Attorney General
- Oregon Department of Justice, Child Advocacy and Protection Division
- ODHS Program Manager (Permanency), Lori Hernandez
- ODHS Supervisor Heather Kitto
- ODHS Supervisor Sonya Faulkner
- Caseworkers David Milne, Nicole Bennett, Ashley L. Crafton
- Rylan Duffy, DOJ Litigation Legal Assistant

- Kayla Miller (affiant)
- Barrister Support Service (process server)

I. QUESTION PRESENTED

Whether Washington County, the State of Oregon, the Oregon Department of Human Services, and their named agents violated Claimant's rights under the Fourteenth Amendment, First Amendment, and Oregon law by (1) executing a warrantless nineteen-minute removal of Claimant's child on an unverified, subsequently recanted, conditional statement never pleaded as a jurisdictional basis; (2) rejecting Claimant's timely written appearance and objection through a court clerk exercising a ministerial duty; (3) proceeding to shelter, jurisdictional, and permanency judgments without service and after a documented telephonic contact with the court; and (4) denying Claimant access to the case record until a copy reached her through counsel for the child.

II. BRIEF ANSWER

Yes. The Washington County Circuit Court, the Oregon Department of Human Services, and the individually named officers acted outside their statutory and constitutional authority. Absolute quasi-judicial immunity does not extend to a clerk's non-discretionary refusal to docket a statutorily conforming filing. *Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429, 436 (1993); *Mullis v. U.S. Bankr. Ct.*, 828 F.2d 1385, 1390 (9th Cir. 1987). A warrantless removal of a child requires reasonable cause to believe the child faces imminent danger of serious bodily injury — a standard the record affirmatively negates. *Kirkpatrick v. County of Washoe*, 843 F.3d 784, 789 (9th Cir. 2016) (en banc); *Mabe v. San Bernardino County*, 237 F.3d 1101, 1106 (9th Cir. 2001); *Wallis v. Spencer*, 202 F.3d 1126, 1138 (9th Cir. 2000). Claimant seeks (a) declaratory relief that the September 8, 2025 shelter order and all derivative orders are void for want of service and personal jurisdiction; (b) immediate return of the child; (c) compensatory and punitive damages; and (d) preservation of all evidence pending suit.

III. STATEMENT OF FACTS

A. The 2024 DHS Home Interview and Unfounded Assessment

On March 26, 2024, ODHS caseworker Emily Gonnuscio, accompanied by caseworker Wiengkhone Soumpholphakdy, conducted a scheduled interview inside Claimant's home at 17548 NW Springville Rd., Unit 9, Portland, OR 97229. The interview covered A.D., her siblings, and Claimant. It lasted approximately two hours. At its conclusion Claimant informed the caseworkers that recording occurred in her home. The caseworkers documented that fact in their case notes and Claimant provided her email address.

Supervisor Heather Kitto reviewed the interview the same day and determined: "Out of control not believed to be met at this time so a safety plan will not be implemented." The 2024 assessment closed as UNFOUNDED for physical abuse to A.D. by Claimant. A.D. recanted her allegation and stated she had lied because she was upset with her mother. Law enforcement closed the referral on the same basis.

The agency's own assessment history reflects two founded findings against Claimant, both from 2019, both involving co-perpetrator Barry Washington. All post-2019 assessments (2020, 2021, 2024) closed unfounded or unable to determine.

B. DHS Restored Father's Contact and Placed the Child in the Home Where the September 2025 Assault Later Occurred

In April 2024, A.D.'s father, Alquan Davis, was arraigned and taken into custody temporarily. During his custody, an ODHS worker transported A.D. from grand jury proceedings directly to Claimant's home. Claimant filed for custody in Washington County; the court declined jurisdiction and referred her to Multnomah County based on the auxiliary jurisdiction from Claimant's prior dependency case involving Barry Washington. Before Claimant could complete transfer proceedings, ODHS took the position that the father "was a safe placement" for A.D. and moved the court to remove the no-contact

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order. A.D. returned to father's care. Approximately five months later — on September 6, 2025 — Alquan Davis was arrested at his home for Criminal Mischief in the First Degree and Strangulation of A.D.

C. The Nineteen-Minute Reversal on September 6, 2025

A.D. was transported to Legacy Randall Children's Hospital. Hospital records document suicidal ideation with multiple stated plans, including a plan to stab herself and a plan to strangle herself. Hospital staff attributed to A.D. a conditional statement that she would not attempt suicide if she went home with her father but would if she went home with her mother.

At 5:40 PM on September 6, 2025, ODHS Supervisor Heather Kitto texted Claimant: "…we can release custody to you." Nineteen minutes later, at 5:59 PM, Kitto reversed the release: "We've received new information that your child has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody while we assess these concerns and she will not be released to your custody tonight."

Within those nineteen minutes ODHS did not: (a) conduct a protective capacity assessment of Claimant; (b) consult a clinical professional about the attributed statement; (c) determine present or impending danger under OAR 413-015-0425; (d) obtain supervisor consultation before the protective custody decision as OAR 413-015-0415 requires; (e) assess Claimant's capacity to manage the identified risk in light of her Certification in Suicide Prevention – Diagnosis and Treatment; (f) offer or consider a safety plan; (g) evaluate placement with Claimant's uncles, who were physically present at the hospital and later approved by ODHS as A.D.'s placement; or (h) contact Claimant to give her an opportunity to respond.

A.D. recanted the attributed statement to the hospital social worker and to Claimant. Hospital social worker Leah Sathrum recorded the recantation. ODHS caseworker Nicole Bennett recorded it. ODHS Supervisor Sonya Faulkner acknowledged the recantation on a recorded call at transcript time 19:18 ("once there was a recantation for that to be considered") and 20:08 ("even given the recantation"). Faulkner further acknowledged: "we didn't actually look at mom's parental capacity" and "we really don't have any instances of her acting dangerously with regard to the safety of this girl."

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D. Claimant's September 8, 2025 Written Special Appearance

Claimant received no summons, no petition, and no hearing notice for the September 8, 2025 shelter hearing. She received only a "Notice of Protective Custody" pamphlet, which is neither a summons nor a petition and imposes no in-person appearance requirement. ODHS Program Manager Lori Hernandez told Claimant that the agency was "not required to physically serve you for a shelter hearing." No text message, voicemail, or notification followed on the communication channels ODHS had used the day before — including Claimant's cell number, Claimant's email, and the text thread through which Supervisor Kitto had communicated on September 6, 2025.

Claimant nonetheless learned the hearing was on Monday, September 8, 2025. She telephoned the clerk's office. She was told two mutually incompatible things: that she was not permitted to file anything in the case, and that filings could only be made in person. She informed the clerk that she could not appear in person and that no proper summons or signed court order had been issued or served on her. The clerk terminated the call before Claimant could complete her special-appearance objection.

At 1:44 PM on September 8, 2025 — before the shelter hearing concluded — Claimant emailed the juvenile court clerk (juvenileweb@washingtoncountyor.gov) a written filing captioned *Objection to Referee Jurisdiction, Motion to Participate by Written Filing, Objection to Continued Custody, and Demand for Immediate Placement with Natural Mother*. The filing contained the court name, the cause title, the party names, and was legible. It expressly designated itself as a special appearance, cited ORS 419A.150, ORS 419B.809, ORS 419B.812, ORS 419B.815, ORS 419B.836, ORS 419B.838, ORS 419B.848(3)(a), ORS 419B.851, and ORS 419B.918, and preserved all jurisdictional objections. At 1:47 PM, Claimant transmitted a duplicate to kat_sanchez@washingtoncountyor.gov.

During the September 8 shelter hearing itself, court personnel confirmed on the record: "Apparently, Mom is called into the court, not to the court hearing, so I'm not quite sure how we can rectify that." A second speaker responded: "She was told of the need to be here in person." A third added: "Hopefully, that's what Ms. Roberson is telling her in the back." No one connected

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Claimant to the proceeding, though the court had a Webex session generated for the hearing pursuant to Washington County Presiding Judge Order No. 343 (signed February 15, 2024).

Attorney Ireland Mahoney of Metro Public Defender Inc. appeared at the shelter hearing purporting to represent Claimant. Claimant had not authorized the appearance. On a recorded call on September 15, 2025, Mahoney stated: "That was a mistake because I'm not yet your lawyer. I was contacting you the day of the shelter because I was representing you on that day, but I was not formally appointed to your case." Mahoney confirmed she appeared "just in that limited capacity."

At 3:34 PM on September 8, 2025, Claimant emailed Supervisor Kitto: "I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing."

E. The Clerk's Written Rejection

On September 9, 2025 at 3:09 PM, Juvenile Case Processing Clerk / Juvenile Department Lead Kimberly A. Beck sent Claimant the following email:

> "Good afternoon, Ms. Penn,
>
> Your personal appearance was required for the shelter hearing on September 8, 2025, and you failed to appear.
>
> Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements.
>
> If you have any further concerns or wish to discuss your situation in more detail, you are welcome to contact our Trial Court Administrator, Richard Moellmer. He can be reached by phone at 503.846.8888 ext. 70568 or by email richard.e.moellmer@ojd.state.or.us
>
> Thank you, Kimberly Beck Juvenile Case Processing Clerk* Juvenile Department Lead Washington County Circuit Court (503) 846-8888 ext. 70621 *Adoptions, Guardianships, Emancipations, Back-Up Courtroom Clerk for Judge Goldman"

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Beck's email cites no statute, no court rule, no UTCR provision, no standing order, and no written deficiency notice. Beck's signature block confines her judicial-adjacent portfolio to adoptions, guardianships, emancipations, and backup courtroom clerking for Judge Goldman.

Claimant replied and asked Beck to identify the "specific defects in my filing making it unsatisfactory to be accepted and to carry out its purpose so that I might be able to correct the issue." Beck identified none. She never has.

The clerk's office subsequently accepted a second filing identical in substance and forwarded it to the tribunal for consideration. No procedural distinction exists between the two.

F. Service — Thirty-Six Days Late

ORS 419B.812 requires service of summons within thirty days of the filing of a dependency petition. The petition was filed on September 8, 2025. The statutory deadline was on or about October 8, 2025. The first service attempt occurred on October 14, 2025 — thirty-six days after the deadline. Caseworker David Milne acknowledged on recorded calls on December 8, 2025 and December 25, 2025 that service had not been accomplished.

The October 10, 2025 *Declaration of Diligent Efforts toward Service* (Rylan Duffy, DOJ Litigation Legal Assistant) and the October 28, 2025 *Affidavit Regarding Efforts to Serve Parent* (Kayla Miller) recite database searches (Oregon Offender, county jail rosters, CLEAR, VISOR) and one attempt through Barrister Support Service on September 19, 2025. Neither document discloses to the court (a) Claimant's September 8, 2025 written filing received by the clerk's office; (b) Beck's September 9, 2025 written response acknowledging receipt; (c) Claimant's September 8, 2025 email to Supervisor Kitto documenting her attempt to participate; (d) Claimant's telephonic contact with the court during the hearing; or (e) the ongoing text and email channel through which ODHS had communicated with Claimant on September 6–8, 2025. Each of these facts sat in the agency's own file.

G. Records Access Denied

Claimant requested the case file under ORS 419A.255 and every other statute permitting access. Judge Rini denied the request and conditioned

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inspection on Claimant's physical appearance at the Washington County courthouse. The condition operated as an absolute bar: Claimant has an active warrant in a separate criminal proceeding (24CR49043) she is contesting on constitutional grounds, and physical appearance at that courthouse exposed her to arrest. Judge Rini's order prevented the clerk from performing the ministerial act of providing copies.

Claimant learned the pleaded allegations only because ODHS Supervisor Sonya Faulkner read them aloud on a recorded call. Claimant obtained the case record only because the child's attorney provided A.D. a zip drive of the pleadings, which A.D. delivered to Claimant, who copied it. The record was affirmatively withheld from Claimant by the state, and reached her only through an intermediary the state did not control.

H. Continued Proceedings on a Void Record

- **September 8, 2025 Shelter Order:** entered while Claimant's September 8, 2025 written objection was undocketed and unresolved, without service, and without offer of the operative Webex link. The order identifies Claimant's counsel as "Mahoney (pending)."
- **September 10, 2025:** Order to Appoint CASA entered.
- **October 14, 2025:** Order Re: Jurisdiction entered; father admitted allegations 2D and 2E.
- **October 31, 2025:** Jurisdictional allegations against Claimant "proven": (A) does not understand the child's specific needs and lacks parenting skills; (B) fails to recognize safety threats from father; (C) is involved in criminal activities. The self-harm statement was not pleaded as a jurisdictional basis.
- **February 23, 2026:** Review Judgment entered.
- **March 11, 2026:** Beck rejected Claimant's Emergency Motion for Telephonic Appearance because it was submitted by email rather than through Guide & File — again with no statute or rule cited. Court co-counsel Scott A. Johnson advised: "email is not the correct method to submit documents into a juvenile case."

- **March 18, 2026:** Order on Mother's Motion.
- **June 29, 2026:** Permanency Judgment entered.

The permanency plan orients A.D. toward return to the father whose September 6, 2025 assault triggered these proceedings — conditioned only on resolution of his criminal case, then on July 21, 2026 rescheduling. A.D. has remained with her great-aunt and uncle since September 7, 2025.

IV. STANDARD OF REVIEW

Whether absolute immunity attaches to a state actor's conduct is a question of law reviewed de novo. *Antoine*, 508 U.S. at 432. A clerk carries the burden of establishing that a challenged act was judicial rather than ministerial. *Id.* at 436. A warrantless child seizure is reviewed under the Fourth and Fourteenth Amendments; the seizing officer bears the burden of showing "reasonable cause to believe that the child is in imminent danger of serious bodily injury and that the scope of the intrusion is reasonably necessary to avert that specific injury." *Wallis*, 202 F.3d at 1138.

V. DISCUSSION

A. Clerk Beck's Rejection of Claimant's Filing Was Ministerial, Not Judicial, and Is Not Immunized

Absolute quasi-judicial immunity attaches only to functions that are "truly judicial." *Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429, 435 (1993). The Supreme Court held that court reporters, whose duty to produce a transcript is prescribed by statute, are not judicial officers and do not receive absolute immunity, because their function is "ministerial," involving no "discretionary judgment." *Id.* at 436. The Ninth Circuit applies the same rule: a clerk performing a discretionary act done under judicial direction may share quasi-judicial immunity, but a clerk performing a non-discretionary act does not. *Mullis v. U.S. Bankr. Ct.*, 828 F.2d 1385, 1390 (9th Cir. 1987).

ORS 419B.851(5) prescribes the clerk's duty in mandatory terms. The clerk "shall indorse the time of day, day of the month, month and year upon the

paper." The statute identifies the conditions under which the clerk "is not required to receive" a filing: illegibility or absence of court name, cause title, party names, or attorney name. It identifies no others. Acceptance is therefore ministerial. Rejection outside those enumerated defects is *ultra vires*.

Beck rejected Claimant's September 8, 2025 filing on grounds — required in-person appearance, failure to appear, "does not satisfy court requirements" — that appear nowhere in ORS 419B.851. Beck cited no other authority. Beck's own signature block confines her judicial-adjacent duties to adoptions, guardianships, emancipations, and backup courtroom work for a different judge. She was not acting under judicial direction in the September 8 dependency matter; she was acting on her own.

The disparate treatment resolves the point. The clerk's office accepted a second, substantively identical filing. No procedural distinction between the two exists. A ministerial officer who accepts filing B while rejecting substantively identical filing A demonstrates that the rejection of filing A was not ministerial refusal for statutory defect — it was arbitrary conduct. Arbitrary conduct is not immunized. *Antoine*, 508 U.S. at 436.

Beck's rejection violated Claimant's First Amendment right of access to the courts and her Fourteenth Amendment right to procedural due process before a governmental deprivation of her fundamental liberty interest in the care and custody of her child. The conduct is redressable under 42 U.S.C. § 1983.

B. The September 6, 2025 Removal Violated the Fourth and Fourteenth Amendments

Officials may seize a child from parental custody without prior judicial authorization only when the "information they possess at the time of the seizure is such as provides reasonable cause to believe that the child is in imminent danger of serious bodily injury and that the scope of the intrusion is reasonably necessary to avert that specific injury." *Wallis v. Spencer*, 202 F.3d 1126, 1138 (9th Cir. 2000); accord *Mabe v. San Bernardino County*, 237 F.3d 1101, 1106 (9th Cir. 2001); *Rogers v. County of San Joaquin*, 487 F.3d 1288, 1294 (9th Cir. 2007); *Kirkpatrick v. County of Washoe*, 843 F.3d 784,

789 (9th Cir. 2016) (en banc). Reasonable cause requires objective evidence, not the officer's subjective belief. *Mabe*, 237 F.3d at 1106–07.

The record affirmatively negates reasonable cause as to Claimant. At 5:40 PM on September 6, 2025, ODHS had determined in writing that Claimant was a safe placement and was preparing to release A.D. to her. Nineteen minutes later ODHS reversed based on a single conditional statement attributed to a fourteen-year-old in a hospital bed following her father's assault. The statement was not verified by a clinician. It was not evaluated in light of Claimant's Certification in Suicide Prevention – Diagnosis and Treatment. It was recanted. It was never connected by assessment to any parental conduct by Claimant. And an available family placement — Claimant's uncles — sat in the hospital room. The agency's own Supervisor Faulkner acknowledged that no parental capacity assessment was performed and that "we really don't have any instances of her acting dangerously with regard to the safety of this girl."

An unverified, unassessed, subsequently recanted, conditional statement — acted upon in nineteen minutes, contradicted by the agency's own contemporaneous determination, and never connected to any parental conduct — does not supply reasonable cause under *Wallis*, *Mabe*, *Rogers*, or *Kirkpatrick*. Nor did it justify continued custody after recantation. The seizure violated the Fourth and Fourteenth Amendments.

C. The Court Lacked Personal Jurisdiction Over Claimant

Oregon law is unambiguous: "A court may make an order establishing jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition." ORS 419B.815(1). Service must be accomplished within thirty days. ORS 419B.812. The savings clause at ORS 419B.836 forgives minor defects; it does not forgive total absence of service. *See Dep't of Human Servs. v. C. M. R.*, 281 Or. App. 618 (2016) (mother not served with summons and petition — judgment vacated); *Dep't of Human Servs. v. K. L.*, 272 Or. App. 617 (2015) (jurisdiction contested for defective service).

The dependency petition was filed on September 8, 2025. The first service attempt occurred on October 14, 2025 — thirty-six days late. Caseworker Milne admitted on recorded calls that service had not been completed.

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Attorney Mahoney's unauthorized appearance did not cure the defect: where personal appearance is required in a dependency proceeding, an attorney cannot appear on the parent's behalf without authority. *Dep't of Human Servs. v. S.C.T.*, 281 Or. App. 246, 253 (2016). Mahoney confirmed on a recorded call that she was "not yet [Claimant's] lawyer" and appeared "just in that limited capacity."

Every order entered against Claimant after September 8, 2025 rests on absent personal jurisdiction. The orders are void, not merely voidable. ORS 419B.803(1)(a); ORS 109.717 (child custody determinations bind only those served or who submitted).

D. The Diligent-Efforts Affidavits Concealed Material Facts

An affidavit of diligent efforts must disclose facts known to the agency that bear on the parent's availability and prior contact. *See Hardwick v. County of Orange*, 844 F.3d 1112 (9th Cir. 2017) (social workers who fabricate or omit material facts from dependency filings enjoy no absolute immunity). The Duffy Declaration and Miller Affidavit describe database searches. They omit: (a) Claimant's September 8, 2025 written filing received by the clerk's office; (b) Beck's September 9, 2025 written response acknowledging receipt; (c) Claimant's September 8, 2025 email to Supervisor Kitto; (d) Claimant's telephonic contact with the court during the shelter hearing; and (e) the ongoing text and email channels through which ODHS had communicated with Claimant on the days immediately preceding filing.

Omitting known channels of contact from a diligent-efforts affidavit — while telling the court that a parent could not be found — is judicial deception. *Id.* at 1116–17.

E. The Records-Access Denial Independently Tolls Any Timeliness Bar

Judge Rini denied Claimant access to the case record and conditioned inspection on physical appearance at a courthouse that exposed Claimant to arrest on an unrelated warrant Claimant is constitutionally contesting. Conditioning a statutory right to court records on submission to arrest is an unconstitutional condition. *Perry v. Sindermann*, 408 U.S. 593, 597 (1972).

Claimant received the pleaded allegations only when Supervisor Faulkner read them aloud on a recorded call, and received the file itself only when the child's attorney provided A.D. a zip drive that A.D. delivered to Claimant.

Any timeliness defense grounded in the thirty-day appeal window of ORS 419A.200 or the ninety-day extension is defeated by the state's own affirmative denial of the records necessary to appeal. Where the state prevents a party from learning the basis of the judgment, the timeliness clock does not run. That is a due process floor, not a discretionary tolling doctrine.

F. ORS 30.275 Notice — Notice of Tort Claim

Pursuant to ORS 30.275, Claimant provides written notice of the following tort claims against Washington County, the State of Oregon, and the Oregon Department of Human Services:

1. **False imprisonment / unlawful seizure of the child.** September 6, 2025 through the present.
2. **Intentional and negligent infliction of emotional distress.** From September 6, 2025 through the present, arising from the removal on a recanted statement, the concealment of the child's location, the denial of visitation, and the misrepresentations at the shelter hearing that Claimant had "refused a safety plan."
3. **Deprivation of parental relationship / interference with parent-child association.** *See* U.S. Const. amend. XIV; Or. Const. Art. I, § 10.
4. **Malfeasance, misfeasance, and nonfeasance** by clerk, court, and agency personnel — including the September 8 filing rejection, the disparate treatment of a substantively identical second filing, and the March 11, 2026 email-rejection.
5. **Denial of access to courts and denial of access to public records** under the First Amendment, the Oregon Constitution, and ORS 419A.255.

Damages are not yet fully ascertainable and will be proven at trial. Economic damages include legal expense, lost income, and out-of-pocket costs. Non-economic damages include emotional distress, loss of parental consortium,

and constitutional injury. Punitive damages are sought against individual actors for willful and reckless disregard of Claimant's rights. *See Horton v. OHSU*, 359 Or. 168 (2016) (Oregon caps on non-economic damages).

G. 42 U.S.C. § 1983 Claims — Pre-Suit Demand

Claimant will pursue civil-rights claims against the individually named actors, in their individual capacities, for:

1. Fourteenth Amendment procedural due process (Kitto, Bennett, Faulkner, Milne, Crafton, Hernandez, and Beck).
2. Fourth Amendment unreasonable seizure of the child (Kitto, Bennett, and their supervisors).
3. First Amendment denial of access to courts (Beck, Johnson, Moellmer).
4. Fourteenth Amendment substantive due process — interference with the fundamental right to family integrity (all named actors).
5. Judicial deception in dependency proceedings under *Hardwick v. County of Orange*, 844 F.3d 1112 (9th Cir. 2017).

Monell liability against Washington County will be pursued for the custom or policy that permits clerks to reject conforming filings without written statutory basis and to require in-person appearance as a filing prerequisite. *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658, 690 (1978).

VI. DEMANDS

Claimant demands the following, each within fourteen (14) days of receipt of this notice:

1. Written confirmation that the September 8, 2025 written filing has been docketed *nunc pro tunc* as of 1:44 PM on that date, together with the ORS 419A.150 objection docketed as pending.
2. Immediate written disclosure of A.D.'s current placement location, together with any orders authorizing restriction of Claimant's contact.

3. Complete production of the case record, without any in-person condition and without fee, including all pleadings, orders, transcripts, exhibits, and audio recordings from September 6, 2025 to present.
4. A copy of any proof of service upon Claimant, with date, method, address, and affiant.
5. All communications between the clerk's office, chambers, ODHS, and the DOJ Child Advocacy and Protection Division regarding Claimant's September 8, 2025 filing and Claimant's records requests.
6. Preservation of all electronically stored information, hard-copy records, court audio, and case-management data related to Case No. 25JU04261, from inception through resolution.
7. Written response to this Notice of Tort Claim under ORS 30.275.

VII. LITIGATION HOLD AND SPOLIATION NOTICE

Each recipient is on notice to preserve every document, communication, record, transcript, audio recording, video recording, calendar entry, text message, email, backup file, archive, and electronically stored information relating to Claimant or A.D. from January 1, 2024 to the present. Preservation extends to court records systems, OJIN, ORCAS, DHS case notes, Barrister Support Service records, chambers correspondence, personal devices used for state business, and all backups. Spoliation of this material will support adverse-inference instructions, sanctions, and independent tort liability.

VIII. RESERVATION OF RIGHTS

Claimant appears specially, without waiving any objection to personal jurisdiction, subject-matter jurisdiction, or venue in the underlying dependency proceeding. Claimant does not consent to the jurisdiction of the Washington County Circuit Court by this notice. Claimant reserves all federal

and state claims and all remedies, including injunctive, declaratory, compensatory, punitive, and equitable relief.

IX. CONCLUSION

Washington County, the State of Oregon, and their named agents removed Claimant's child on an unverified, recanted, conditional statement; rejected Claimant's timely written appearance on grounds appearing in no statute; proceeded to permanency without service; and denied Claimant the records necessary to appeal. The orders are void. The conduct is redressable. The Claimant seeks the return of her child and full compensation for the constitutional and statutory injuries inflicted.

/s/ AshLe' Penn *Without Prejudice* Appearing Specially, Natural Mother of A.D. 17548 NW Springville Rd., Unit 9 Portland, OR 97229
ashlepenn.ap3@gmail.com

Date: July 30, 2026

CERTIFICATE OF SERVICE

I certify that on July 30, 2026, I served a true copy of the foregoing on each of the persons and entities listed above by electronic mail and by U.S. Mail, certified with return receipt requested.

/s/ AshLe' Penn *Without Prejudice*

AUTHORITIES CITED

- *Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429 (1993).
- *Mullis v. U.S. Bankruptcy Court*, 828 F.2d 1385 (9th Cir. 1987).
- *Wallis v. Spencer*, 202 F.3d 1126 (9th Cir. 2000).
- *Mabe v. San Bernardino County*, 237 F.3d 1101 (9th Cir. 2001).
- *Rogers v. County of San Joaquin*, 487 F.3d 1288 (9th Cir. 2007).
- *Kirkpatrick v. County of Washoe*, 843 F.3d 784 (9th Cir. 2016) (en banc).

- *Hardwick v. County of Orange*, 844 F.3d 1112 (9th Cir. 2017).
- *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658 (1978).
- *Perry v. Sindermann*, 408 U.S. 593 (1972).
- *Lassiter v. Dep't of Soc. Servs.*, 452 U.S. 18 (1981).
- *Dep't of Human Servs. v. C. M. R.*, 281 Or. App. 618 (2016).
- *Dep't of Human Servs. v. K. L.*, 272 Or. App. 617 (2015).
- *Dep't of Human Servs. v. S.C.T.*, 281 Or. App. 246 (2016).
- *Dep't of Human Servs. v. M. C.-C.*, 275 Or. App. 121 (2015).
- *Horton v. OHSU*, 359 Or. 168 (2016).
- ORS 30.275; ORS 109.717; ORS 419A.150; ORS 419A.200; ORS 419A.255; ORS 419B.100; ORS 419B.192; ORS 419B.297; ORS 419B.340; ORS 419B.803; ORS 419B.809; ORS 419B.812; ORS 419B.815; ORS 419B.836; ORS 419B.838; ORS 419B.839; ORS 419B.848; ORS 419B.851; ORS 419B.869; ORS 419B.918.
- OAR 413-015-0415; OAR 413-015-0425; OAR 413-015-0455; OAR 413-040-0006.
- 42 U.S.C. § 1983; 42 U.S.C. § 671(a)(15).
- U.S. Const. amend. I, IV, XIV.
- Wash. Co. Presiding Judge Order No. 343 (Feb. 15, 2024).

EXHIBIT K

Washington County HR fee-waiver denial (Aaron Mendes, Sept. 19, 2025)

Referencing "evidence the County has in its possession." *Not located in the current file set — to be inserted.*

EXHIBIT L

Washington County District Attorney denial opinion (Deputy DA Sabina Khachaturova, Oct. 31, 2025)

Not located in the current file set — to be inserted.

EXHIBIT M

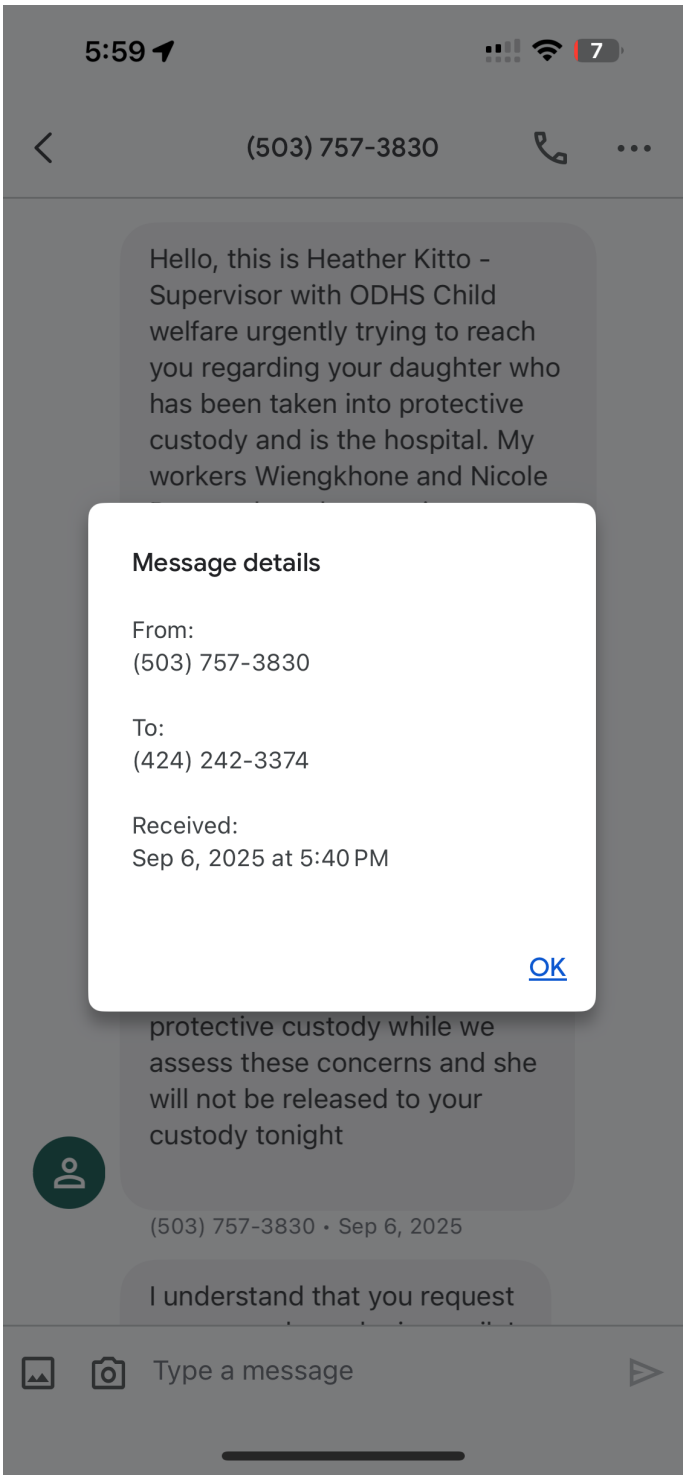
Petition for Review of Fee Waiver Denials (served on DA Barton, Oct. 17, 2025)

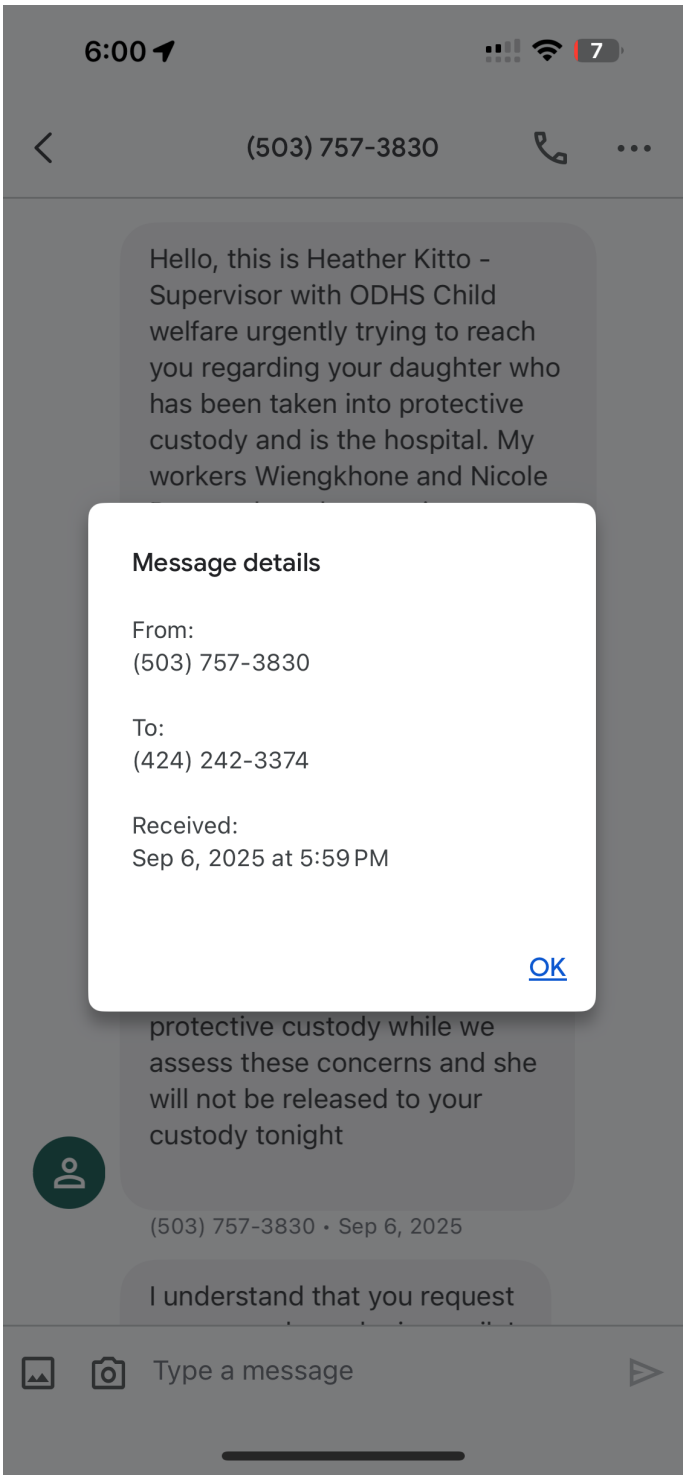
Not located in the current file set — to be inserted.

EXHIBIT N

Kitto text thread — 5:40 PM release and 5:59 PM reversal (Sept. 6–7, 2025)

Metadata-stamped screenshots; the 19-minute reversal and the "court summons" notice.


5:59
(503) 757-3830
Hello, this is Heather Kitto - Supervisor with ODHS Child welfare urgently trying to reach you regarding your daughter who has been taken into protective custody and is the hospital. My workers Wiengkhone and Nicole
Message details
From:
(503) 757-3830
To:
(424) 242-3374
Received:
Sep 6, 2025 at 5:40 PM
OK
protective custody while we assess these concerns and she will not be released to your custody tonight
(503) 757-3830 • Sep 6, 2025
I understand that you request
Type a message


6:00
7
(503) 757-3830
Hello, this is Heather Kitto - Supervisor with ODHS Child welfare urgently trying to reach you regarding your daughter who has been taken into protective custody and is the hospital. My workers Wiengkhone and Nicole
Message details
From:
(503) 757-3830
To:
(424) 242-3374
Received:
Sep 6, 2025 at 5:59 PM
OK
protective custody while we assess these concerns and she will not be released to your custody tonight
(503) 757-3830 • Sep 6, 2025
I understand that you request
Type a message

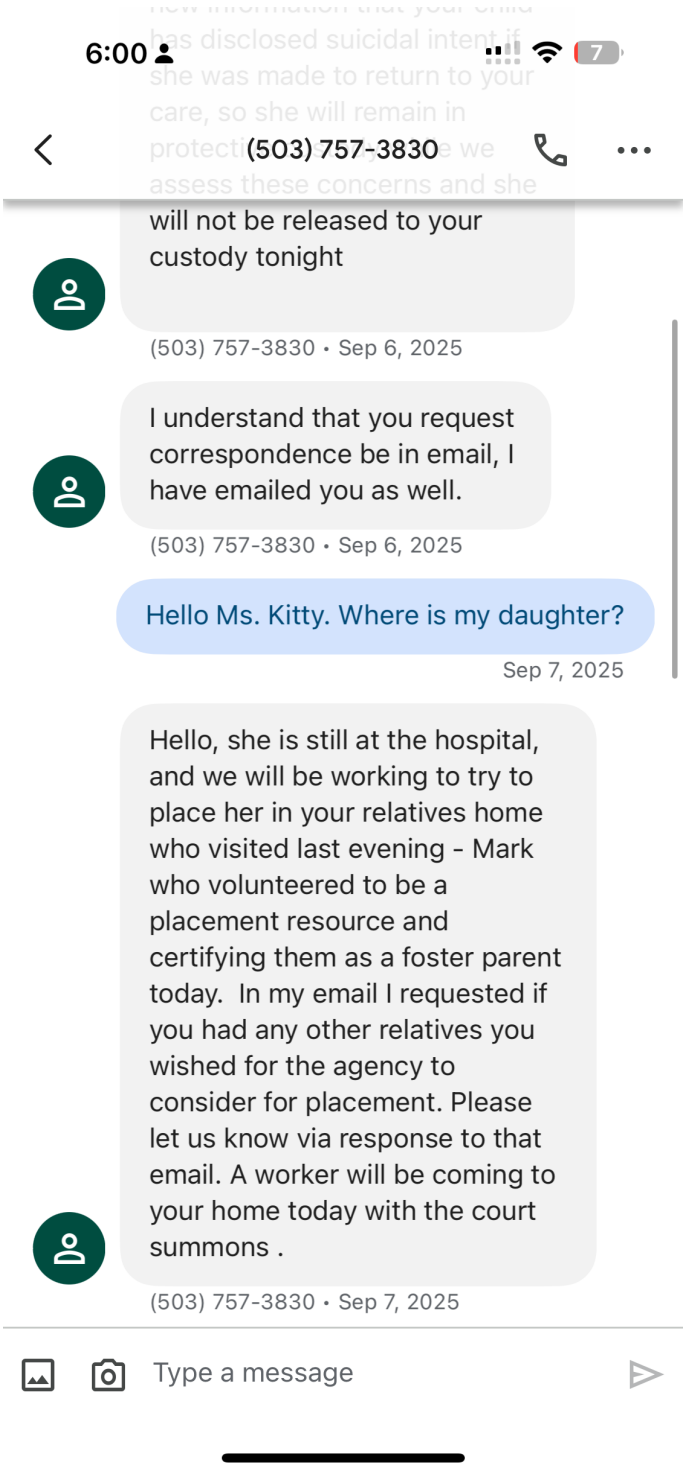

6:00
(503) 757-3830
will not be released to your custody tonight
(503) 757-3830 • Sep 6, 2025
I understand that you request correspondence be in email, I have emailed you as well.
(503) 757-3830 • Sep 6, 2025
Hello Ms. Kitty. Where is my daughter?
Sep 7, 2025
Hello, she is still at the hospital, and we will be working to try to place her in your relatives home who visited last evening - Mark who volunteered to be a placement resource and certifying them as a foster parent today. In my email I requested if you had any other relatives you wished for the agency to consider for placement. Please let us know via response to that email. A worker will be coming to your home today with the court summons .
(503) 757-3830 • Sep 7, 2025
Type a message

EXHIBIT O

Shelter Hearing transcript excerpts, September 8, 2025

Telephonic contact with the court also provided separately as media file `MotherTelephonicContact.mp4`.

Speaker 1 - **00:01**

Go ahead.

Judicial Officer - **00:02**

Good afternoon, you, Honor. The state calls case number 25 ju04261. This is the time set for a shelter hearing from DHS. We have Ms. Galaher present today in the courtroom. We have the youth present today in the courtroom as well, with her attorney, Mr. Lathke, who's also present today in the courtroom. Don't believe we have mother present today, but we do have Ms. Monesy appearing today on behalf of mother in person. I don't believe we have father present today due to issues with getting him to appear via WebEx from the jail. But we do have Ms. Moales present in person on behalf of father today from Casa. We have Ms. Fong in the courtroom today. We also have, from the DA's office, DDA Willyamson in the courtroom today.

Judicial Officer - **00:42**

We also have the resource parents present today in the courtroom, the maternal great aunt and uncle. And my name is Nick Ricciado. I'm here today on behalf of the state, and I'm appearing today for AAG yb. Thank you.

Speaker 1 - **00:53**

Apparently, mom is called into the court, not to the court hearing, so not quite sure how we can rectify that.

Speaker 3 - **01:00**

She was told of the need to be here in person.

Speaker 1 - **01:04**

Hopefully, that's what Ms. Robertson is telling her in the back. What are you asking for, Amy Ricciado?

Speaker 2 - **01:11**

Well, you, Honor, today. DHS is asking for the court to grant a temporary custody of this child. This child was taken in protective custody over the weekend without a court order due to imminent threat of severe harm to this child. The agency is asking the court to find that jurisdiction is appropriate for the uccjda. The child has lived in Oregon for the last six consecutive months. Reasonable efforts have been made to prevent the need for removal. And diligent efforts have been made to notify parents and grandparents of today's hearing, along with diligent efforts to place the child with relatives. This child is placed in a relative placement. This is substitute out of home placement. The agency would ask the court to find as appropriate as the least restrictive placement.

Speaker 2 - **01:53**

At this time, the agency does not have the information to believe that this is an Indian child for the state or federal Indian Child Welfare Act. And if this court does grant temporary custody of this child of dhs, the agency would ask that this court set a jurisdiction trial within 60 days of filing of the petition today. Lastly, you, Honor, the state at this time would move to enter the fact, findings, reassessment summary and the PCR that have been filed for today's hearing.

Speaker 1 - **02:15**

Thank you so much. States one, the protective custody report states two, the fact finding consisting of 207 pages states through the ODHS assessment summary consisting of 78 pages. Ms. Galaher, please raise your right hand to be sworn.

Speaker 4 - **02:34**

Yes.

Speaker 3 - **02:34**

Thank you. For the record, please state Victoria Gallaher V I C T O R A G A L L A G H.

Speaker 1 - **02:40**

E R All right, you may be seated. I did have an opportunity to review the protective custody report. What else would

you like me to know?

Speaker 3 - **02:46**

Just at this time, we are requesting temporary custody with placement and substitute care. Current placement is maternal great aunt and uncle. Father is currently incarcerated on charges related to the assault and strangulation of this child. He was already out on a release agreement due to prior charges related to the physical abuse of this child from April of this year. And during this most recent incident, numerous witnesses observed father physically abusing the child. And as a result, there were multiple calls made to 911. Mother is aware of the hearing as well as ODHS intervention. She was not cooperative in speaking with the agency or planning for her child while at the hospital. Did not really appear to understand the safety concerns. Mother also currently has a warrant for her arrest related to pending charges of theft 1 and possession of mass.

Speaker 3 - **03:33**

Given the current circumstances, we believe that placement in the home of the parent is not appropriate and that substitute care would be the appropriate placement. We don't have any reason to know that ICWA applies. Both parents have either denied ancestry or at times, father has indicated he does not know.

Speaker 4 - **03:47**

All right,.

Speaker 1 - **03:50**

Ms. Monesy, anything? No, Ms. Moales.

Speaker 5 - **03:55**

Your Honor, I would enter a general denial on behalf of father. Ask for Walker to be appointed for future dates.

Speaker 1 - **04:01**

Shalotsky.

Speaker 6 - **04:03**

Your honor, defer to the court on placement. But Charles does want to be allowed contact with mother. She reported to me that she recently had.

Speaker 1 - **04:12**

Hold one second. That's a deputy. He might be getting dad. All right. We do have father, so I'm going to take a quick jump back. Really quick. Ms. Galaher, again, the exhibits have been received. What would you like me to know? Go ahead.

Speaker 2 - **05:17**

Good afternoon, your honor. The state calls case number 25 ju04261. This is the time set for a shelter hearing from DHS. We have Ms. Galaher present.

Speaker 1 - **05:32**

Her in that substitute care. Align for visitation. I'll note that the court. I will be appointing a cost on this case.

Speaker 6 - **05:44**

Now, she did have overnight contact with mom last weekend.

Speaker 1 - **05:53**

All right, we do have father, so I'm going to take a quick jump back. Really quick. Ms. Galaher, again, the exhibits have been received. What would you like me to know?

Speaker 3 - **06:02**

We are requesting Temporary custody today with placement and substitute care. The current placement is police like the maternal great aunt and great uncle. Father is currently incarcerated on charges related to the assault and strangulation of his child. He was already out of custody on a release agreement due to prior charges. Also related to the physical abuse of this child from April of this year. During the most recent incident, there were numerous witnesses that observed father physically assaulting the child and as a result Multiple calls to 911 were made. Mother is aware of the agency's involvement. She is aware of today's hearing. Over the weekend. She was not cooperative or engaged when trying to. When the agency was trying to contact her and speak with her. She wouldn't participate in planning for her child at the hospital and doesn't appear to understand the safety concerns.

Speaker 3 - **06:55**

She also currently has a warrant for her arrest and she has pending charges for possession of meth and theft. 1. This time we don't leave an in home plan with either parent. It's appropriate. We also don't have any reason to believe that ICWA applies.

Speaker 1 - **07:10**

All right, go ahead, Mr. Wotisky. Sorry about that.

Speaker 4 - **07:13**

No problem.

Speaker 6 - **07:14**

Again, daughter is requesting to maintain contact with mother. She would also like contact with father but she understands that the court is not able to permit that right now. She did have overnight contact with mom last weekend where they were able to go and help get Charles hair done. Apparently everything was all well and everybody had a good time. So she is requesting to be able to have robust contact with mom. We are also requesting notice if the agency is wanting to change placement. And Charlie's also wanting to be able to go back to father's house, which is a rented apartment to make sure that she's able to get her belongings from that house in case that house is barred from father or if the eviction proceedings or anything like that were to be brought.

Speaker 4 - **08:11**

Thank you.

Speaker 1 - **08:11**

Thank you councilman.

Speaker 4 - **08:14**

Anything, your honor.

Speaker 1 - **08:16**

Ms. Willyamson, resource parents, anything you guys want me to know today?

Speaker 4 - **08:29**

Yes. Oh my God.

Speaker 1 - **08:33**

You're good to see it's more comfortable. It's nerve wracking.

Speaker 4 - **08:39**

I guess this duration of this placement at this juncture. I'm concerned right now.

Speaker 3 - **08:48**

I'm sorry.

Speaker 4 - **08:52**

I'm concerned about further child at this juncture with regards to first of her mental health. One because I know DHS has some order, well being order against her right now as far as her mental health with certain restrictions for that regarding that and barring her mom for talking to her because of that also, which is one of my concerns at this juncture about how quickly that gets resolved and when does that get resol And I guess the other one is also asking with her continuing her education to move forward as far as her going to school way out here in Hillsboro and that's maybe way out in Shoutdale. It was kind of concerned for me also about maybe go back and forth but over a two hour period in any given day for that in my concern.

Speaker 1 - **09:42**

Okay, thank you. So we are here today for a shelter hearing leave Ichor oracle apply priors were notified resource parents are in attendance. We don't have any grandparents intends. The court does have jurisdiction under the UCC JEA to make child custody determination. We'll consider the agency to have made reasonable efforts to prevent or eliminate need for protective custody. Child's currently placed out of home. This is the least strict most family like setting agency has made diligent efforts towards relative placement. I will be appointing a CASA on this case. Should mother apply qualify MPD will be appointed to represent mother. Father need not apply since he is in custody automatically qualifies. Hillsborough Law Group will be appointed to represent father.

Speaker 1 - **10:24**

Child need not apply Ride Olig and associates will be appointed to represent the child at this time the child will be placed in the Temporary custody of ODHs for care placement and supervision and substitute care. Noting visitation I'm noting is after consultation with the child. It sounds like she wants those visits but I want to give her a little bit of personal agency in how those visits are set up and how they look. If she does want visitation alone the expectation would be you know the standard within 48 hours of today essentially.

Speaker 3 - **10:52**

Sorry. I believe the grandmother has joined the hearing by phone.

Speaker 1 - **10:56**

Is that maternal or paternal? Grandma, is there anything you want me to know today?

Speaker 7 - **11:05**

No, I. Oh, sorry. I was having problems getting logged in. I missed the beginning. Spending minutes trying to get logged in. I missed the beginning. I just got logged in a little bit ago. I don't know what I missed.

Speaker 1 - **11:19**

I appreciate that you're here. The state has requested that Almira be made award of the court take temporary jurisdiction of Almira and continue her placement out of home with the relatives. And that is effectively what we are doing. We're continuing her in that substitute care allowing for visitation. I will note that the court supports any criminal no contact order with father allow for contact. Per the Oregon Department and Services this case is being assigned to Judge Rey. Judge Rey is across hall courtroom 110. Are the attorneys able to come back on October 14th at 9:30 and 10? October 14th at 9, 30 and 10.

Speaker 7 - **12:08**

Are you asking me if I'm able.

Speaker 3 - **12:09**

To come back it?

Speaker 1 - **12:10**

No, just the attorneys. Yes.

Speaker 5 - **12:12**

Yes.

Speaker 2 - **12:13**

Oh, networks rer.

Speaker 4 - **12:14**

Thank you.

Speaker 1 - **12:15**

All right. Trial, if necessary, is going to be October 31st at 9am there may be conflicts at dates. I mean, I sent a CJ there already. If that's the case, I'll let you take that up with Judge Rey when you get to the 14th. Dad, I recognize you're presently in custody. If you are still in custody when we get to October 14, arrangements will be made for you there to appear remotely like you are today or you'll be brought over. However, if you are out of custody, you are going to have to come to court. My guess is the agency will probably be delivering a subpoena to you in the next. My guess is 24 hours. Mr. Shaddo, do you have any questions?

Speaker 2 - **12:51**

Just to confirm, is that October 31st?

Speaker 1 - **12:52**

Correct.

Speaker 2 - **12:53**

Thank you, Honor.

Speaker 1 - **12:54**

Ms. Shalotsky?

Speaker 2 - **12:55**

No, thank you, Ms. Moni.

Speaker 1 - **12:57**

Ms. Moales.

Speaker 5 - **12:58**

Your Honor, I wanted to clarify that you were recommending that contact in Dad's criminal order be per dhs.

Speaker 1 - **13:05**

Yeah. So this court supports any criminal no contact order with father allow for contact per ODHs. So should he have one, my hope is that contact is allowed per dhs.

Speaker 5 - **13:15**

Okay, it sounded like the court supports no contact.

Speaker 1 - **13:19**

No, the court. I will rephrase this to make sure it doesn't look like I supported no contact works. I do support contact per ODHs. All right, again, this will be Judge Reaney's case. She will see you all back on the 14th at 9:30am thank you very much.

Speaker 4 - **13:33**

Thank you.

Speaker 2 - **13:33**

Thank you.

EXHIBIT P

ODHS 307B case note — March 26, 2024 in-home interview

"Out of control not believed to be met at this time so a safety plan will not be implemented."

DHS
Oregon Department of Human Services

Case note was added documenting the police response to this incident. The attached police report documents the address for AshLe'

3/25/24 12:15 PM	Emily Gonnuscio	Alleged Perpetrator	Alquan A. Davis		
Voicemail and text message received from Alq-uan. Called back and left a voicemail. Al-quan called back and a visit was schedule for this afternoon.					
3/25/24 2:00 PM	Emily Gonnuscio	Alleged Perpetrator	Alquan A. Davis	Worker/Parent	Scheduled Contact Occurred
An interview was completed with Al-quan at his home with Wiengkhone Soumpholphakdy. 1536 and 9004 provided. ICWA completed as No. Home walkthrough completed with no health or safety concerns.					
3/25/24 3:30 PM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Unscheduled Contact Occurred
Approximately 3:30pm, made contact with AshLe' at her home, visit scheduled for tomorrow at 10am. 4:06pm, worker texted AshLe' requesting to meet at 11am tomorrow					
3/26/24 11:00 AM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Scheduled Contact Occurred
An interview was completed with AshLe' at her home with caseworker Wiengkhone Soumpholphakdy. At the end of the conversation, AshLe' announced that everything ODHS says in her home is recorded. She later emailed to provide her email address which is ashlepenn.ap3@gmail.com. 1536 and business card previously provided					
3/26/24 11:00 AM	Emily Gonnuscio	Alleged Victim	Almira A. Davis	Worker/Child	Scheduled Contact Occurred
An interview was completed with Al-mira at her mother's home with her mom and caseworker Wiengkhone Soumpholphakdy present. She provided images of the marks on her legs from her dad hitting her with a belt- photos were taken and are uploaded					
3/26/24 11:40 AM	Emily Gonnuscio	Other Child (ren) in Home	[redacted]	Worker/Parent	Scheduled Contact Occurred
An interview was completed with [redacted] at her mother's home with her mom and caseworker Wiengkhone Soumpholphakdy present					
3/26/24 12:45 PM	Emily Gonnuscio	Supervisor/Worker Consultation	Ashle A. Penn; [redacted] Almira A. Davis; Alquan A. Davis		
Staffed with Supervisor Heather Kitto. Out of control not believed to be met at this time so a safety plan will not be implemented.					

EXHIBIT Q

ARIA certification of completion of court-ordered services

SAFE of Columbia County
Support
Advocacy
Freedom
Empowerment

Certificate of Participation

Ashle Penn

Has completed

ARIA

Assessing Relationships: Information and Abuse

4 Hours of Domestic Violence Training:

Information and Abuse

Power and Control as a Dynamic in Relationships

Safety Planning is a Verb

Assessing Self and Relationships

Janelle Adams

Janelle Adams, DHS Co-Located DV/SA Advocate

4/5/2022

Date

EXHIBIT R

Wolfpack Consulting and Therapeutic Services — Progress Notes (partial)

Partial records to establish participation only; confidential content not disclosed.

WOLF PACK CONSULTING AND THERAPEUTIC SERVICES, LLC

PROGRESS NOTES

Client:	AshLe Penn (AP02980)	Birth Date:	02/15/1988
Service Date:	05/03/2021 01:00 PM - 01:45 PM	Duration:	45 minutes
Provider(s):	Clinical Director Terry Ellis, LCSW (NPI: 1992844096); Mental Health Intern Klarissa Gaskell, QMHA (NPI: 1710585005); Admin Admin Staff		
Insurer(s):	Health Share Care Oregon		
Place Of Service:	Home	CPT Code: H0004	Case #

Focus of Session:

T/w met with AshLe in her home for individual therapy session.

Therapeutic Intervention:

Treatment focus was on utilizing narrative therapy techniques to engage with therapy and bring to light the struggles that AshLe has experienced over the past few years. AshLe expressed feelings of disempowerment and frustration while working within the system as a survivor of intimate partner violence. AshLe expressed a strong connection with her children and an understanding of the need to provide them with a safe and loving home. AshLe was engaged, focused, and determined during the session.

Planned Intervention:

T/w will meet with AshLe on 5/10/21 in her home for individual therapy.

Return Appointment: 05/10/2021 01:00 PM

WOLF PACK CONSULTING AND THERAPEUTIC SERVICES, LLC

PROGRESS NOTES

Client:	AshLe Penn (AP02980)	Birth Date:	02/15/1988
Service Date:	05/10/2021 01:00 PM - 01:45 PM	Duration:	45 minutes
Provider(s):	Clinical Director Terry Ellis, LCSW (NPI: 1992844096); Mental Health Intern Klarissa Gaskell, QMHA (NPI: 1710585005); Admin Admin Staff		
Insurer(s):	Health Share Care Oregon		
Place Of Service:	Home	CPT Code: H0004	Case #

Focus of Session:

T/w met with AshLe in her home for individual therapy session.

Therapeutic Intervention:

Treatment focus was on continuing to engage in narrative therapy to establish AshLe's concerns and understanding of her well-being following several traumatic incidents from her previous partner and the child welfare system. T/w and AshLe talked through her past experiences and what lead up to DHS involvement, creating and understanding AshLe's values and concerns for her family. AshLe expressed an understanding of the weight the IPV incidences carry and have put on her and her family. She continues to educate herself on IPV, reading peer reviewed articles that we discussed in session.

Planned Intervention:

T/w will meet with AshLe on 5/17/21 in her home for individual therapy.

Return Appointment: 05/17/2021 01:00 PM

EXHIBIT S

Mother's documented early attempts to resolve required services

Documentary support is incorporated and pin-cited in the letter; a standalone compilation follows if requested.